Subject: Service of Defence Submission Pursuant to Tribunal Direction – *Under Protest* and Interpreter Requested for future hearings

- **To:** Tribunal Registry: brisbane.registry@art.gov.au

- Simon Reid: reid.simon4@gmail.com
- Forward Focused Group (FFG): info@ffg.net.au
- AGS Solicitor (Miss Dickinson): karlie.dickinson@ags.gov.au

From: Vida Reid
Date: 16/08/2025

Dear Parties,

Please find attached my Defence Submission, served pursuant to the direction issued by Deputy President McMillan KC in the matter of **Reid v NDIS Commission – Case No. 2023/3361**.

---

1. Compliance Under Protest

This submission is being served **strictly under protest** and **without waiver of any legal rights or objections**.

My concerns are as follows:

1. The document was initially intended solely for the Tribunal and AGS.
2. It was already subject to a serious **privacy breach**, when AGS forwarded it to a third party with a known conflict of interest.
3. That breach remains **unaddressed by the Tribunal**, and instead I have been instructed to re-serve the same document on parties adverse to me, compounding the risk and harm.

This service is made *solely in compliance with the Tribunal's direction*, and should not be interpreted as voluntary disclosure, informed consent, or abandonment of my right to pursue complaints or review of this process, including via the Commonwealth Ombudsman, the Privacy Commissioner, or superior courts including the high court of Australia.

---

2. Request for Interpreter

I also formally request that all future hearings and directions hearings be conducted with the assistance of a qualified interpreter.

English is **not my first language**. While I am able to communicate in basic conversational English, I have **struggled greatly to keep up and fully understand** the proceedings, especially due to the **fast pace of speech and the legal terminology ("legalese")** used during the hearings.

For procedural fairness, the interpreter assigned should:

- Be **fluent in both English and my native language Persian/Farsi**;
- **Understand legal language and concepts**; and
- Be able to **interpret accurately in a tribunal/legal context**.

This request is made to ensure that I can meaningfully participate in the proceedings and fully understand the case against me.

Please confirm receipt of this correspondence and the attached Defence Submission.

Kind regards,
Vida Reid

Administrative Appeals Tribunal – Application for Stay of Proceedings and Severance

Vida Reid – Applicant (AAT Matter No. 2023/3361)
Commissioner of the NDIS Quality and Safeguards Commission – Respondent
(Related matters: Simon Reid – AAT 2023/3363; Forward Focused Group Pty Ltd – AAT 2023/4494)

Introduction and Background

1. **Directions Hearing and Formal Application Requirement:** On 14 February 2025, at a joint directions hearing before the Tribunal (Deputy President presiding)to address the privacy breach that had occurred by Miss Dickinson at AGS. During that meeting, the ART requested 2 weeks from that date to address the breach in detail and to investigate it. It then took the ART until 19th May 2025 to send an email and set a date for hearing on 6th June 2025 to address the privacy breach that had occurred.
2. On 6th June 2025 all partied attended the hearing which was meant to address the privacy breach but this was not addressed at all and appeared to be brushed off by the ART as a simple response of we have no grounds to look at it. This comment came after the ART states "This privacy breach, can you tell me a little bit about it? I'm sorry, I haven't seen anything in terms of material about it. So can you just indicate to me what that's about?". A privacy breach not looked at properly nor was it understood in full and ART appeared to rely on the defendant to lead it and explain if it should or should not be looked at properly and what it was about. The ART representative then proceeded to place me under questioning without prior notice to prepare to answer unrelated personal matters which appeared to be a calculative joint move by the ART and the respondent. I, Vida Reid as the Applicant was placed under personal questioning without notification to which also had no relevance to the matter on the day and that this was going to be a session to do that at and as I was waiting to hear the outcome of my privacy breach. I was then directed to file a formal written application seeking a stay of proceedings and separate hearing of my matter. I, VIDA REID (the Applicant) had previously attempted to request a stay and severance via email (with a supporting affidavit affirmed was sent and filed with the ART on **28 January 2025**) and in that email I, VIDA REID stated and indicated she is now self represented, but on June 6th 2025 the Tribunal indicated that a properly filed application consolidating my requests was necessary but admitted it had not looked at any files I had sent and was being lead by the respondent as to what has been sent and received. This document constitutes the formal application as directed.
3. On the 9th of May 2025 another privacy breach had occurred this time by the ART itself. An email sent to a previous lawyer no longer acting for me

or my matters which stated "**From:** Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Friday, 9 May 2025 1:19 PM
To: Charles Dallimore <**charles@weeksco.com.au**>; Commissioner of the NDIS Quality and Safeguards Commission <**legal@ndiscommission.gov.au>**
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

Dear Parties,

The Tribunal wishes to list this matter for a Telephone Directions Hearing to progress the matter. It should be noted that this will only be listed with the Applicant and Respondent.

The Telephone Directions Hearing will address the issues of the privacy breach, Directions to the listing of the application for a stay and Mrs Reid's application to be heard separately.

The Tribunal intends to correspond with Mr Reid and the Company, as tmye have been certain issues that have arisen which I, VIDA REID seeks to ventilate and the nature of this, indicates that such matters be dealt with in their absence. Could both Mrs Reid and the Respondent indicate their views as to this course.

Yours sincerely

Kathy L
Tribunal Services Officer

Administrative Review Tribunal
GD Registry
T: 1800 228 333
E: brisbane.registry@ art.gov.au" I have just only recently become aware of this email recently as it was forwarded on apologising that it was sent to them by mistake.

4. I am not confident in the ART when it fails to read the material before it prior to attending the hearing and when it appears to rely on the respondents heavy weight lawyers and appears to allow manipulation down right dirty tactics which contradict fairness and adhering to model litigant.

5. While I sent my submission to both ART and AGS, I did not authorize the AGS to forward my confidential material to a third party — especially not to a lawyer who previously represented me and now acts for anotmy party in this very dispute. That lawyer's involvement poses a clear and known conflict of interest. AGS had no legal basis to include him in that communication, and by doing so, breached the Privacy Act 1988, the Model Litigant Policy, and fundamental principles of procedural fairness. The ART, having now been made aware of the breach, has a duty to investigate and respond. To do otherwise is not only legally wrong — it is a failure of its administrative justice role. For the ART to claim it has no obligation to address the breach is both legally incorrect and ethically unacceptable. By dismissing the issue, the Tribunal undermines the procedural fairness and confidentiality that applicants are entitled to expect when engaging with an administrative justice system.

6. **Joined Proceedings:** The Applicant's AAT proceeding (No. 2023/3361) is currently **joined** with the proceedings of my husband (Mr. Simon Reid, AAT No. 2023/3363) and a related company, Forward Focused Group Pty Ltd ("FFG", AAT No. 2023/4494), by order of the Tribunal. All three matters involve the Respondent and arise from related events, and prior Tribunal directions have provided that evidence in one matter is to be evidence in the others . While there is factual overlap, my case has distinct features and interests that, as explained below, warrant it being heard separately to avoid prejudice.

7. **Applicant's Status and Supporting Materials:** I am a self-represented litigant in these proceedings. I have filed an affidavit affirmed 28 January 2025 (and accompanying exhibits) detailing the relevant background. In summary, the evidence before the Tribunal establishes that:
   - I, VIDA REID a former director of FFG, having served from 28 August 2020 until my resignation on 1 November 2022 . Mr. Simon Reid is now the sole director and secretary of FFG. Thus, since late 2022, the Applicant has had no management control of the company.
   - In October 2022, the Applicant was charged by the National Disability Insurance Agency (NDIA) with alleged fraud-related offenses in relation to NDIS activities . Those **criminal proceedings were dismissed** on 23 February 2024 for want of prosecution (i.e. the charges were dropped and did not proceed) . Despite the cessation of that prosecution, the Respondent's regulatory action against the Applicant (and FFG) – namely, the banning orders under review – remain in effect and were not withdrawn .
   - On 25 September 2024, **Australian Border Force (ABF)** officers detained and searched the Applicant, Mr. Reid, and their children

at Perth International Airport, **explicitly informing them that the stop was conducted at the request of NDIS authorities**. An ABF officer advised: *"the NDIS and the NDIS Minister have asked us to search you every time you enter and/or leave the country"* . The Applicant's mobile phone and other devices were seized and examined during this incident. This occurred **seven months after** the criminal charges had been dismissed, indicating continued government scrutiny of I, VIDA REID and my family.

- The Applicant has raised a formal **privacy complaint** concerning an alleged **unauthorised disclosure of my confidential information**. In particular, correspondence she sent on 28 January 2025 (outlining my stay request and enclosing my affidavit) was forwarded by the Respondent's officer (Ms. Karlie Dickinson of the Australian Government Solicitor) to a **former legal representative of Mr. Reid** without I, VIDA REID's consent. I, VIDA REID contend this was a breach of my privacy and procedural rights. The Tribunal acknowledged this complaint at the directions hearing (recognizing that the Respondent's solicitors had contacted Mr. Reid's former lawyers) , but noted that the Tribunal itself cannot adjudicate a privacy breach. The status of any investigation or resolution of this issue remains unclear as of the filing of this application.

8. **Nature of Relief Sought:** In light of the above background, I, VIDA REID now formally **applies for two forms of relief** from the Tribunal:

    - **a. Stay of Proceedings:** An order that the proceedings in AAT matter 2023/3361 (and in AAT matter 2023/4494, on behalf of FFG) be **stayed** pursuant to section 41 of the *Administrative Appeals Tribunal Act 1975 (Cth)*, until it is confirmed that no parallel law enforcement or related investigative action is ongoing that could prejudice the fairness of these proceedings.
    - **b. Severance of Proceedings:** An order that I, VIDA REID's application be **severed** from, and heard separately to, the applications of Mr. Simon Reid and FFG. In effect, the Applicant seeks to set aside or vary the current direction that these matters be heard together, so that my case (2023/3361) proceeds on its own, distinct track. (For clarity, I, VIDA REID do **not** seek to affect Mr. Simon Reid's matter (2023/3363) except to the extent necessary to separate it from my own; Mr. Reid remains free to pursue or stay his application as he sees fit.)

    The grounds for each form of relief are set out below.

Grounds for Seeking a Stay

9. **Power of Tribunal to Grant Stay:** The Tribunal has the power to order a stay of the decision under review (in whole or in part) if it is appropriate to ensure that the rights of the parties are preserved pending the Tribunal's final determination (see s.41, *AAT Act 1975*). In this case, a stay of the proceedings themselves (i.e. a temporary adjournment or pause in the AAT hearing process) is sought in order to safeguard the fairness and integrity of the review, for the reasons that follow.

10. **(i) Uncertainty Regarding Parallel Investigations:** there is significant concern that **other investigations or enforcement actions may still be pending** in relation to the matters at issue, creating a risk of prejudice if the Tribunal hearing proceeds now. While the Respondent has recently asserted on 11th March 2025 that "Following receipt of Mrs Reid's submissions, the Commission has made enquiries with the NDIA and has been informed that tmye is no current criminal investigation pertaining to Mrs Reid or to FFG. ", this assurance is **narrowly framed**. It appears to speak only to investigations by the NDIA, yet the Applicant's situation involves multiple agencies beyond the NDIA:

- The matters under review (banning orders and related events) were part of a large-scale fraud investigation involving a multi-agency *NDIS Fraud Taskforce* comprising 21 government agencies . The Respondent has not confirmed whether any of those other agencies (such as the Australian Federal Police, Australian Criminal Intelligence Commission, or ABF) continue to investigate or monitor issues relating to I, VIDA REID or FFG . A statement that NDIA is not currently investigating is not equivalent to a statement that *no* agency is investigating.
- The **ABF incident on 25 September 2024** strongly suggests ongoing interest by authorities. ABF officers acted on what was described as a *"direct request from the NDIA"* to intercept I, VIDA REID's family, long after the original criminal case was dropped. This indicates either an ongoing investigative effort or at least an active alert in place. It would be **unsafe and potentially prejudicial** to assume that all law enforcement interest has ceased. Proceeding with the AAT hearing now, without certainty on this point, could risk interfering with or prejudicing any **still-live inquiries** (for example, by compelling testimony or disclosure of defense evidence that might later be used in a prosecution).
- The Applicant has reasonably sought clarification from the Respondent on whether *all* investigative activities across all relevant agencies have truly ceased . To date, no comprehensive confirmation has been given. In these circumstances, a **temporary stay** is prudent to "freeze" the AAT proceedings until the landscape is clear. This Court

(and the parties) should not be forced to proceed while a shadow of possible criminal or enforcement action hangs over the matter. Staying the proceedings ensures that **I, VIDA REID's right against self-incrimination and right to a fair hearing** are protected, and avoids putting the Tribunal in a position where its proceedings might inadvertently impinge on other processes.

11. (i) On 6th June 2025 the respondent asked the ART to join another person to the hearing by the name of Karen Haywood and stated "She's an investigator with the Quality and Safeguards Commission, and my number is 0864798861" This came directly after Miss Dickinson's statement on 11th March 2025 that " There are no active investigations". Miss Dickinson appears not only to be a dishonest person but one that does not abide by the law and certainly not a model litigant. Until the ART can summon and subpoena all documents to have a full understanding and disclosure of where the current events are at we simply cannot proceed. The ART allowed the investigator to be on the call despite the previous stance of no investigations failing to protect I, VIDA REID's right to a fair hearing and failing to have a complete understanding of the matter as it is being progressed by allowing these dirty dishonest tactics and abuse of power to be carried out during the hearing and failing to uphold my rights.

(ii) Respondent's Own Prior Position on Stay: It is notable that the Respondent **previously advocated for a stay** of these proceedings for substantially the **same reasons** I, VIDA REID raises now. In submissions to the Tribunal dated 29 November 2023, the Respondent argued that the AAT matters should be delayed because: **(a)** *"Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings,"* and **(b)** *"The Tribunal must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings."* . In other words, the Respondent acknowledged that ongoing or potential criminal matters necessitated caution and a pause in the AAT process.

At that time (late 2023), criminal charges were indeed pending against I, VIDA REID. Those charges have since been dismissed – but critically, the **underlying situation has not been fully resolved**. As explained, there remains ambiguity about whether investigatory agencies have truly closed their files. The **risk of prejudice** that the Respondent highlighted (witnesses in AAT giving evidence that could affect criminal proceedings, or the Tribunal treading into facts that are subject to a possible prosecution) has not disappeared merely because one set of charges was dropped. It is **entirely conceivable that new charges could be considered**, or that evidence from these proceedings could influence other

enforcement actions, especially given the ABF's continued interest.
Despite this, the Respondent has recently shifted to **oppose** I, VIDA REID's stay request – an unexplained reversal of position . No clear reason has been provided for the change in stance, even though the *same concerns of prejudice* persist. The Applicant submits that the Tribunal should give weight to the Respondent's earlier acknowledgment that a stay is the appropriate course to protect the integrity of concurrent processes. **Consistency and prudence** dictate that, until it is confirmed that no law enforcement action is in play, a stay remains warranted in order to "ensure no prejudice arises" .

(iii) Ensuring Procedural Fairness and Integrity: Beyond the possibility of external investigations, a stay would serve the broader interests of justice by ensuring that the AAT proceedings are **not tainted by unresolved factual or legal issues elsewhere**. It would be procedurally unfair for I, VIDA REID to have to proceed to a final merits hearing under the cloud of uncertainty regarding potential criminal liability. Even the perception of an ongoing investigation can chill a party's ability to fully present their case – for example, I, VIDA REID might feel compelled to withhold evidence or temper my testimony for fear of self-incrimination or future repercussions. The Tribunal has a duty to conduct proceedings fairly, and this includes taking into account any factors that could undermine the *integrity* of the process. By granting a temporary stay, the Tribunal would allow time for any outside investigations to be conclusively resolved or disavowed, thereby **ensuring that when the case does proceed, it can do so in a truly fair and focused manner**.

(iv) Breach of Privacy and Equality of Arms: The Applicant further submits that a short stay is justified in light of the **unresolved privacy breach issue** and the imbalance it reflects. I, VIDA REID's confidence in the process has been undermined by the knowledge that my private correspondence with the Tribunal (and supporting affidavit) was **divulged to a third party** who was not at that time representing any party in the case . This incident is not merely a collateral issue; it strikes at the heart of I, VIDA REID's ability to trust that my case is being handled properly and fairly. An internal inquiry into this breach (by the Respondent or relevant authorities) may be ongoing. Granting a stay would afford time for that matter to be

Served under protest as directed by the Tribunal on the 6th July 2025. Disclosure does not constitute waiver of privacy rights or consent.

investigated and resolved, so that the proceedings can continue without the "cloud" of a pending misconduct allegation. It also sends a signal that the Tribunal is mindful of **procedural fairness** – including the principle of *equality of arms*. At present, I, VIDA REID feels (with some justification) that the Respondent's side has not adhered to proper process (by sharing my materials inappropriately) and yet is pressing forward with the hearing. A brief pause to "reset" and ensure all parties are on equal footing is both reasonable and necessary. As I, VIDA REID has stated, **my request for a stay is not intended to delay the matter, but to ensure fundamental fairness and clarity before proceeding** .

12. In summary, the **balance of convenience** favors a stay. **No substantial prejudice** will be caused to the Respondent or other parties by a temporary pause – indeed, the Respondent foresaw benefit in a stay when it suited them. Conversely, **denying a stay** would pose a real risk of injustice to I, VIDA REID (and even to the integrity of any future proceedings by other agencies). Once it is confirmed that there are no parallel proceedings or investigations that could conflict with the Tribunal's review, I, VIDA REID is ready and willing to proceed to a hearing on the merits. This stay request is made in good faith and solely to protect my rights, not to *avoid* or *prolong* the ultimate resolution .

Basis for Severance of Proceedings (Separate Hearing)

13. In addition to the stay, the Applicant seeks an order that my application be heard **separately** from the related matters of Mr. Simon Reid and FFG. This request is made to prevent **overlap and conflicts of interest** from causing unfairness to I, VIDA REID. While the three matters were joined for administrative convenience (given some common background facts), it has become evident that a **joint hearing would prejudice I, VIDA REID's rights** in several ways:

(i) Conflicting Interests and Testimonial Dilemmas: Hearing the cases together creates a situation of inherent conflict between the parties' interests – particularly between Ms Vida Reid and Mr. Simon Reid.

Although they share a last name and children, their legal positions in these proceedings are not perfectly aligned. Each is an applicant seeking to set aside or vary banning orders that pertain to their own conduct and suitability. If combined, **one applicant's strategy may harm the otmy's case**. The clearest example, raised by the Respondent's counsel at the directions hearing, is that if I, VIDA REID **chose not to give evidence in a joint hearing, adverse inferences (so-called Jones v Dunkel inferences) could be drawn against Mr. Reid's case** . In effect, in a joint proceeding I, VIDA REID

might feel compelled to testify purely to avoid damaging Mr. Reid's chances – even if advising or requiring my testimony is not in my own best interest. This places I, VIDA REID in an impossible position: either testify (and be cross-examined on potentially sensitive matters) when she otherwise might not, or **exercise my right to silence and inadvertently prejudice my husband's case**. Such a dilemma is fundamentally unfair. Severing the hearings will remove this particular conflict: I, VIDA REID's choice to give evidence (or not) in my own proceeding will have no automatic consequence for Mr. Reid's matter, and vice versa.

14. Furthermore, in a joint hearing, **evidence or arguments presented for one party could inadvertently bleed into the assessment of the other party's liability**, even if they should properly be considered separately. For instance, evidence of Mr. Reid's actions or character might cast a prejudicial shadow on perceptions of I, VIDA REID (or FFG) if all is heard together, despite legal principles that each case should be decided on its own evidence. The converse is also true. Severance ensures the Tribunal can consider **I, VIDA REID's case on its own merits**, focusing on my conduct and the specific evidence relating to my, without being swayed by evidence that strictly concerns Mr. Reid or the company.

15. **(ii) Distinct Factual and Legal Issues:** Although the three matters arise from a shared context (the operation of FFG and related NDIS compliance issues), tmye are **critical distinctions in factual and legal issues** between them. I, VIDA REID's case involves my personal role and alleged conduct. Notably, she **ceased to be a director of FFG as of 1 November 2022** , just prior to the events that triggered the banning orders. Mr. Reid's case, in contrast, encompasses his ongoing involvement as the current director of FFG, and FFG's matter involves questions about the corporate entity's operations and future in the NDIS scheme. The NDIS Commissioner's decisions under review are different in scope: for example, Mr. Reid's banning order (as varied on internal review) broadly prohibits *any involvement in the NDIS sector for 5 years* , whereas FFG's banning order (varied on review) currently bans the company for 3 years , and (it is understood) Ms. Reid's personal ban may involve yet another set of criteria or duration (potentially tied to "suitability" grounds). The **legal and factual defenses** available to each applicant may therefore diverge. For example, I, VIDA REID intends to argue that the legal basis of the banning order against my was fundamentally altered on review (from one statutory ground to another) , raising issues of procedural fairness unique to my case. Such an argument is irrelevant to Mr. Reid's case or the company's case. Conversely, Mr. Reid may have arguments concerning his ongoing role in the disability sector that do not apply to I, VIDA REID. A **joint hearing would blur these critical distinctions**, potentially confusing or conflating the evidence. Separate hearings will

allow each applicant to emphasize the facts and legal issues particular to their situation, and allow the Tribunal to adjudicate with clarity on each individual matter.

16. **(iii) Imbalance in Representation and Resources:** I, VIDA REID is a **self-represented litigant**, whereas the other parties have, at various times, enjoyed the benefit of legal representation. FFG and Mr. Simon Reid were initially represented by a law firm (Tom & Co Legal) during the internal review process and earlier stages of this matter . Although that firm has since ceased to act for Mr. Reid , it stands to reason that **Mr. Reid and FFG have had significantly more legal resources and advice at their disposal over the course of these proceedings**. Mr. Reid, as the director of a company and an interested party, may yet obtain new legal representation as the AAT matter progresses. The Respondent, of course, is represented by the Australian Government Solicitor. In a **combined hearing**, I, VIDA REID would therefore be one self-represented person effectively facing **two well-resourced adversaries**: the Respondent (with counsel) on one side, and my co-applicants on the other side (who, while nominally aligned in seeking to overturn bans, have their own counsel or ability to engage counsel and potentially interests that diverge from mys). The Tribunal has recognized that navigating a multi-party proceeding can be exceptionally difficult for a person without legal training . The Deputy President at the directions hearing noted the complexity of the case and encouraged I, VIDA REID to seek legal assistance. Despite my best efforts, I, VIDA REID does not have dedicated counsel on the record. Forcing my to litigate **jointly** with other parties would severely disadvantage my: she would have to understand and respond to legal arguments made on behalf of Mr. Reid/FFG and handle any evidence they introduce, in addition to managing the case against the Respondent. This “two-front” scenario is beyond the reasonable capacity of a self-represented litigant and poses a serious **procedural fairness concern**.

17. Specific practical problems would arise from this imbalance. For example, if the matters remain joined, **witness examination becomes complicated** – multiple parties would have rights to cross-examine each witness. If Mr. Reid (or his counsel) were to cross-examine a witness or the Respondent’s officials, I, VIDA REID (unrepresented) would have to follow that and possibly re-examine or clarify points for my own case – a task even experienced counsel would find challenging in a multi-party setting. Likewise, if I, VIDA REID wished to cross-examine a witness (say, to challenge evidence related to my), both the Respondent and Mr. Reid’s side could also cross-examine or object, potentially turning the hearing into a complex three-way contest rather than a straightforward applicant-versus-respondent inquiry. Separating the proceedings will

simplify and streamline the hearing of I, VIDA REID's case, **ensuring she can participate meaningfully** without being overwhelmed by side issues related to other parties.

18. **(iv) Prejudice from Joint Evidence and Joint Decision-Making:** The current consolidation of matters means that all evidence filed is deemed to be in common and that a single hearing (or set of findings) might dispose of all three cases . The Applicant submits that this arrangement is no longer tenable without causing injustice. For instance, if the matters remained joined and proceeded to hearing, the Tribunal might hear a large volume of evidence – some of which relates only to FFG or only to Mr. Reid – and yet that evidence would technically be "before it" in deciding I, VIDA REID's case as well. Even with the best of intentions, **there is a risk that evidence not strictly relevant to I, VIDA REID could influence the outcome for my**. The safer course, to preserve impartial adjudication, is to formally segregate the cases and require that **only evidence properly relating to I, VIDA REID's matter is led in my hearing**. The Applicant notes that even the Respondent has treated the applicants differently in certain respects (for example, the duration and terms of banning orders differ, as do some allegations). A joint hearing could thus result in a *composite* outcome that does not accurately reflect the nuances of each party's situation. This composite approach would be prejudicial to I, VIDA REID, who deserves a finding that is based on my own conduct and circumstances alone.
19. **(v) Efficiency and Case Management:** It is acknowledged that tribunals often join matters for efficiency wmye facts overlap. However, efficiency must not trump fairness. In this case, any administrative efficiency gained by a joint hearing is outweighed by the **practical difficulties and fairness issues** highlighted above. Moreover, severing I, VIDA REID's matter need not unduly waste resources – quite the contrary. My case, if separated, could potentially proceed on a clearer, narrower path, focusing on the specific evidence about my role (for example, the period up to October 2022) and the legal issues about my banning order. This might well shorten my hearing. The remaining matters (Mr. Reid and FFG) could be managed together or separately as appropriate, but I, VIDA REID would no longer be required to attend to those. If anything, **severance may streamline the resolution** by allowing each matter to be negotiated or heard without entanglement. For example, it is conceivable that Mr. Reid and the Respondent could reach some consent position or narrowed issues once I, VIDA REID's participation is carved out. In sum, separate hearings would **localize each dispute**, likely making each easier to settle or adjudicate.
20. **(vi) Overall Fairness Considerations:** The Tribunal's mandate is to act with as little formality and technicality as possible, but also **to ensure a fair hearing for all parties**. Given the highly unusual circumstances here

– a self-represented applicant whose case was joined with that of 2 other parties, where potential conflicts of interest abound – it is submitted that fairness militates strongly in favor of **severance**. I, VIDA REID harbors no intent to prejudice Mr. Reid or FFG; she simply seeks the opportunity to have **my case heard on its own, without being forced to fight on multiple fronts or sacrifice my own interests to protect another party**. This is in line with basic principles of justice. It is respectfully noted that if the matters remain joined, **procedural unfairness will be inevitable**, whereas if they are separated, each party can still have their day in court with rights fully preserved.

21. In my communications to the Tribunal, I, VIDA REID has already articulated these concerns in substance. She emphasized that the combined proceeding risks a "process imbalance" given my self-represented status, and that the **critical distinctions in the cases could be blurred** . The Tribunal is urged to exercise its discretion to **vary the earlier direction for a joint hearing**. The *Administrative Appeals Tribunal Act* and the Tribunal's own procedures allow matters to be heard together or separately as necessary to ensure convenient and fair disposition of cases. Mye, separating I, VIDA REID's application is not only convenient – it is essential to achieve a just outcome.

Procedural Fairness Considerations

22. The two aspects of relief sought – a stay and a severance – are connected by the overarching principle of **procedural fairness**. Granting these orders will assure that the proceedings moving forward are fair, impartial, and respectful of the Applicant's rights. The following points summarize the fairness implications:

- **Avoiding Prejudice and Upholding Justice:** If the Tribunal grants a stay until all question marks over parallel investigations are removed, it will prevent a scenario where I, VIDA REID might suffer prejudice either by compromising a future criminal case or by being cross-examined on matters that are simultaneously under criminal scrutiny. The Tribunal would thereby uphold the integrity of its process, ensuring it is not used (even unintentionally) as a discovery tool or leverage in a potential criminal context . Similarly, by hearing I, VIDA REID's case separately, the Tribunal will prevent prejudice arising from conflation of evidence between parties with different roles, thereby allowing a clean and focused consideration of my situation.
- **Maintaining Equality of Arms:** Staying the proceedings until the privacy breach issue and investigation uncertainties are resolved helps level the playing field. Right now, the Applicant is at a disadvantage – key information (my affidavit and legal arguments) was exposed to another party's former counsel without my approval, and she remains unsure what became of that information. Pausing to resolve such issues (or at least to let

the dust settle) is part of treating the self-represented applicant **equitably**. Likewise, severance mitigates the inequality arising from my lack of representation. It is far easier for I, VIDA REID to present my case against a single opposing party (the Respondent) than against two or more parties. Fairness calls for giving my that more manageable forum.

- **Tribunal's Own Directions and Model Litigant Expectations:** The Applicant notes that during the 6th June 2025 conference, the Tribunal recognized the unusual complexity and indicated that I, VIDA REID should clearly set out what she seeks so that all parties (including Mr. Reid/FFG) understand and can respond . The making of this formal application itself is in compliance with that directive, and it is now before the Tribunal for determination. In the interest of fairness, the Respondent (a Commonwealth entity) is expected to act as a model litigant – which includes being **flexible in procedural matters to facilitate fair resolution**. Given the Respondent's own prior stance that a stay was prudent, and given no substantive counter-argument has been offered against severance aside from convenience, it is submitted that granting this application would be consistent with fair play and the spirit of the model litigant rules .

- The Tribunal directed and Pressured me to re-send my application and to cc all parties ignoring my right to privacy and fair hearing and argument.

- **No Substantial Hardship to others:** Procedural fairness must be balanced across all parties, but importantly **no other party will suffer any undue hardship if the Applicant's requests are allowed**. A stay pending clarification of investigations protects *everyone's* interests – including Mr. Reid's (he too would presumably want to avoid prejudicing any proceedings that could involve him) and even the Respondent's interest in avoiding the need to defend its decision twice (for example, if a prosecution were later launched and a court had to deal with overlapping issues). Severance, while it may inconvenience the Respondent by requiring two hearings instead of one, does not cause any legal prejudice to the Respondent; it will have full opportunity to present its case against I, VIDA REID in my separate proceeding. Mr. Reid and FFG likewise are not prejudiced – their matters can continue on their own track. Indeed, if Mr. Reid also desires a stay (as the Respondent speculated he might), he can seek one; if not, he may proceed – but crucially, I, VIDA REID would not be forced to either accelerate or delay my case based on his preferences. Each party gains autonomy over their litigation strategy, which is a fair outcome.

23. In sum, granting the stay and severance will position the Tribunal to hear I, VIDA REID's case **at a time and in a manner that is just**. As the Applicant I reiterate that I'm **not seeking to avoid the Tribunal's review of the banning order against me** – on the contrary, I'm eager to clear my name and resolve the matter on the merits. My sole aim is to

ensure that when that review happens, it occurs **under conditions where my rights are fully protected** and the proceeding is uncontaminated by external or procedural pitfalls. This application is brought to uphold the foundational requirements of natural justice: the right to a fair hearing before an impartial tribunal, and the right to have that hearing free from undue collateral pressures.

Relief Sought

Accordingly, I, Vida Reid respectfully seek the following orders or directions from the Tribunal:

- **1. Stay of Proceedings:** That pursuant to section 41 of the *Administrative Appeals Tribunal Act 1975 (Cth)*, the Tribunal **stay the proceedings** in AAT matter 2023/3361 (Vida Reid) **and** in AAT matter 2023/4494 (Forward Focused Group Pty Ltd) until such time as it is confirmed to the Tribunal's satisfaction that **no ongoing law enforcement or regulatory investigation** relating to the subject matter of these applications is being pursued by any agency. In practical effect, the stay would remain in place until any currently active investigations (if they exist) are concluded or officially discontinued, so as to ensure that the continuation of the Tribunal hearing will not prejudice the parties' interests or the integrity of any such investigations.
- **2. Severance of I, VIDA REID's Application:** That the Tribunal's prior directions joining I, VIDA REID's application with those of Mr. Simon Reid and FFG be **varied or set aside**, and that AAT matter 2023/3361 be **severed** from AAT matters 2023/3363 and 2023/4494. I, VIDA REID's application should henceforth be managed and heard **separately**, with separate evidence and submissions, from the applications of Mr. Simon Reid and Forward Focused Group Pty Ltd. (Should the Tribunal deem it necessary, this could include a direction that evidence in I, VIDA REID's matter is not automatically evidence in the others, and vice versa, thereby formally isolating the records of each case.)
- **3. Further or Alternative Orders:** Such further or other orders as the Tribunal deems appropriate to give effect to the above or to otherwise ensure the fair and just determination of I, VIDA REID's application. In particular, the Applicant respectfully invites the Tribunal to make any ancillary directions for the service of this application on the other parties and the timetabling of any responses or submissions (noting that the Tribunal at the directions hearing contemplated service on Mr. Reid and FFG so they have an opportunity to consider their position). The Applicant stands ready to comply with any such directions.
- **4. INTERPRETER Requested :** I also formally request that all future hearings and directions hearings be conducted with the assistance of a qualified interpreter.

English is not my first language. While I am able to communicate in basic conversational English, I have struggled greatly to keep up and fully understand the proceedings, especially due to the fast pace of speech and the legal terminology ("legalese") used during the hearings.
For procedural fairness, the interpreter assigned should:

- Be fluent in both English and my native language (Persian/Farsi);
- Understand legal language and concepts; and
- Be able to interpret accurately in a tribunal/legal context.

This request is made to ensure that I can meaningfully participate in the proceedings and fully understand the case against me.

Conclusion: For the reasons outlined, I, VIDA REID submits that the requested stay and severance are necessary to prevent injustice and ensure a fair hearing. I trust the Tribunal will give due consideration to my position as a self-represented litigant and to the unique complexities of these combined matters. The goal of this application is not to delay the resolution of the dispute, but to guarantee that when the matter is heard, it is on a level playing field and without extraneous risk factors. I appreciate the Tribunal's attention to these issues and is grateful for the opportunity to present this application in accordance with the Tribunal's directions.

In my application, I have included all relevant prior correspondence, to the best of my knowledge, in order to assist the Tribunal in more easily reviewing and understanding the case and the matters to be addressed at my hearing. These are part of my submission and should be read and understood in full.

Respectfully submitted,

Vida Reid
Applicant in person (self-represented)



Date: 16/08/2025

Served under protest as directed by the Tribunal on the 6th July 2025. Disclosure does not constitute waiver of privacy rights or consent.

RE: ...The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]

From: Dickinson, Karlie (karlie.dickinson@ags.gov.au)

To: vida_reid@yahoo.com; brisbane.registry@art.gov.au

Date: Wednesday 12 February 2025 at 08:49 pm AWST

OFFICIAL

Dear Mrs Reid

Please find attached the listing notice for tomorrow's interlocutory hearing.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
karlie.dickinson@ags.gov.au**OFFICIAL**

From: vida Reid <vida_reid@yahoo.com>
Sent: Wednesday, 12 February 2025 6:10 PM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; brisbane.registry@art.gov.au
Subject: Re: ...The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]

Good Afternoon,

I just called the ART and was connected to the Perth office for some reason. I have been advised that the hearing tomorrow is via video conference.

I would like to note that I have not been provided with any links or time although now i have been advised over the phone by the ART perth Branch that is it at 10am Brisbane time.

I kidnly request that you please send me a link to the meeting asap.

Kind Regards,
Vida
Sent from my iPhone

> On 4 Feb 2025, at 10:16 PM, vida Reid <vida_reid@yahoo.com> wrote:

Dear ART and Miss Dickinson,

Please find attached my formal response regarding the stay of proceedings in matters 2023/3361 and 2023/4494.

I note that Mr. Monks was included as a third party in prior correspondence by Miss. Dickinson regarding my recent submission on 28th Jan 2025.

To ensure transparency, procedural fairness and to address the breach of privacy that has taken place, I am sending this response to all parties involved. However, I formally request that all further correspondence regarding my application be directed solely to me, as I am self-represented, and that my confidential submissions not be shared with any third parties without my explicit consent and my legal rights are upheld. I reserve all my legal rights.

Given the urgency of the matters outlined in my response, I request immediate acknowledgment of receipt and confirmation that my application will be considered without unnecessary delay.

Should you require any further information, please let me know.

Kind regards,
Vida Reid

On Monday 3 February 2025 at 06:57:06 am AWST, Dickinson, Karlie <karlie.dickinson@ags.gov.au> wrote:

OFFICIAL

Dear Mrs Reid

Thank you for forwarding your application requesting and the reasons why you seek, a stay of your application and that of FFG.

I have copied Mr Tom Monks, who represents your husband Simon and also the Brisbane Registry to this email (as the email that you had for them had a small error which may have delayed receipt of your email).

Given your application contains information that is also relevant to your husband, we would be grateful if **Tom and Co Legal** could **urgently** confirm whether Mr Simon Reid is also seeking a stay of this application. We would particularly appreciate if we could be informed of Mr Reid's position by the end of this week (i.e. Friday 7 February), given an interlocutory hearing has been listed for Thursday 13 February 2025.

Please be aware that I have taken provisional instructions from the Commission and it may be possible to agree to your request without the need for a hearing, however we are unable to confirm our position until we have an indication as to Mr Simon Reid's approach to his application.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

OFFICIAL

From: vida Reid <vida_reid@yahoo.com>
Sent: Tuesday, 28 January 2025 3:38 AM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; sydney.registry@aat.gov.au; Perth Registry <perth.registry@aat.gov.au>; brisbane.registry@att.gov.au; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed

Dear ART Registry,

I refer to the ongoing proceedings involving myself, **Vida Reid (2023/3361)**, and **Forward Focused Group Pty Ltd (2023/4494)**. I am now self-representing, and I would like to

sincerely apologize for any delay in providing this update to the Tribunal. I was previously advised by my legal representatives that they would be providing updates to the ART and have assumed that all necessary notifications have been made up to this stage.

I wish to request that the Tribunal grant a **stay of proceedings** in my matter, as well as the associated matter for **Forward Focused Group Pty Ltd**, based on the principles and reasoning already presented, argued and accepted earlier on in these ongoing hearings.

As demonstrated in the submissions from the Respondent (dated 29 November 2023- I have attached it in this email for your convenience), the argument for a stay was successfully made on the basis that:

1. **Concurrent investigations and proceedings** exist, which could be compromised by the continuation of the AAT process.
2. Witnesses involved in criminal proceedings or ongoing investigations may be reluctant or fearful to participate, potentially jeopardizing fair outcomes in either forum.
3. Evidence and facts remain unresolved and are the subject of dispute in concurrent proceedings.

The same principles apply directly to these matters. The ongoing and unresolved investigations, as referenced in the Respondent's submissions, are still **active and substantive**, which makes it unreasonable to progress the AAT applications at this time.

Given this, I propose the following directions:

1. That the proceedings for **Vida Reid (2023/3361)** and **Forward Focused Group Pty Ltd (2023/4494)** be **stayed until further order** of the Tribunal to ensure no prejudice arises due to concurrent investigations and unresolved evidence disputes.
2. If the Respondent, NDIS and the Commissioner of the NDIS Quality and Safeguards Commission can **confirm that no further investigations are ongoing**, I would be open to **continuing with my application**.

In requesting this stay, I note the Respondent's own prior argument made in support of their application for a stay, as highlighted in their submissions:

- "Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings" (Respondent's Submissions, 29 November 2023, Paragraph 10).
- "[The Tribunal] must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings" (Respondent's Submissions, Paragraph 12).

Applying the **same rationale and precedent** already accepted in this matter, it is evident that staying these proceedings aligns with principles of procedural fairness and efficiency.

I have copied the Respondent's legal representative, (AGS), into this email for their awareness and to ensure full transparency.

Please do not hesitate to contact me if further information is required. I look forward to your confirmation regarding this request.

Kind regards,
Vida Reid

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.



20250122 ART Listing Notice (Interlocutory Hearing by Video - Thursday, 13 February 2025. 10AM) 23004627(53730111.1).pdf
239.9 KB

Administrative Review Tribunal

ADMINISTRATIVE REVIEW TRIBUNAL)
)
) No:
2023/3361
2023/3363
2023/4494

NATIONAL DISABILITY INSURANCE SCHEME DIVISION)

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

Affidavit of Vida Reid AFFIRMED January 2025

INDEX

Tab	Description	Date
	Affidavit of Vida Reid affirmed January 2025	1-8
VR-1	Current and historical company extract for Forward Focused Group Pty Ltd	9-14
VR-2	Copy of "Outcome Details" in relation to prosecution dated 26 February 2024	15
VR-3	Copies of letters dated 10 October 2024, 14 October 2024 and 23 October 2024 between Hammond Legal and the Australian Border Force	16-23

V.R

I, VIDA REID, of 96 Amethyst Crescent Mount Richon 6112, unemployed, in the State of Western Australia, make oath and say as follows:

1. I make this affidavit in support of the application to stay these proceedings on behalf of Forward Focused Group Pty Ltd (**FFG**) and on my own behalf.

Background

2. I was born on 11 January 1987 in Iran.

3. I grew up primarily in Malaysia and moved to Australia on 1 October 2011.

4. I was a registered director of FFG from 28 August 2020 to 1 November 2022.

5. Attached and marked "**VR-1**" is a true copy of a current and historical company extract in respect of FFG.

6. I was the subject of a criminal prosecution initiated by the National Disability Insurance Agency (**NDIA**) on or about 18 October 2022.

7. On or about 23 February 2024, that prosecution was dismissed for want of prosecution.

8. Attached and marked "**VR-2**" is a true copy of the "Outcome Details" in relation to the prosecution dated 26 February 2024.

Australian Border Force

9. On or about 25 September 2024, my family and I were at Perth International Airport set to board flight No. QZ537 destined for Bali, Indonesia.

10. My family includes my husband, Simon Reid, and my children, Alex and Atrisa.

11. Alex is 9 years of age. Alex suffers from conditions including Autism level 3, Global Developmental Delay, Speech Delay, Attention Deficit Disorder, Attention-Deficit/Hyperactivity Disorder, Profound Intellectual Disability and Speech Impairment.

12. My daughter is now 16 years of age. She was 15 at the time of the events described below.

13. On that day, my family and I were stopped by persons who identified themselves as belonging to the Australian Border Force (**ABF**). We were stopped at the immigration gates, which would not open for us to pass through after about 5

V.R

minutes of waiting. I could see the ABF officers pointing to us and making phone calls from their desk which was behind the automatic gates.

14. A female ABF officer approached us. Although I do not recall the precise words she used, I recall the gist of what she said, being, that she would open the gates but we must immediately go to the left hand side and wait for a few officers who will come down and want to speak to us.

15. There were four to six ABF officers in the group who approached us. One of the officer's names was Julian. I cannot remember the other male officers' names, but I recall that one of them was of Asian ethnicity. I observed the officers make several phone calls and then other officers came towards us, who were asked by the officers already standing with us to take our luggage from the plane.

16. I asked the officers why we were being stopped. I do not recall the exact words used, but I recall the gist of the conversation, being:

    16.1. One of the officers asked us if we had been in any trouble lately;

    16.2. Simon responded by saying, yes, my wife was charged with fraud by the NDIS;

    16.3. One of the officers then responded by saying, yes that's right, this is why we have stopped you, it has to do with that;

    16.4. I then turned to them and said, I went to court and all charges have been dropped, why are you doing this?

    16.5. One of the officers said to me, the NDIS and the NDIS minister have asked us to search you every time you enter or leave the Country, we're just doing our jobs and we get our orders from the top;

    16.6. Simon said, why, the charges have been dropped?

    16.7. One of the officers responded by saying, you have been put on a list and have been flagged and we have been instructed to stop you every time you come across the border.

17. My family and I were then detained by the ABF officers and searched for about three hours. When I say "detained", I mean we had our passports taken from us, meaning we could not go back as the gates were locked behind us, or go forward to board our flight, and we were told we could not leave.

18. We were taken to an area that was separated from everyone else at the airport. We were told we could not move until told otherwise, and any disagreements may lead to our arrest. The officers took Simon's phone and my phone.

19. The officers searched us at a metal table and took our other electronic devices. The officers took our devices to a different room which an officer told us was where the data would be "downloaded and copied over".

20. One of the officers asked Simon for the passcode to his phone. I cannot recall the exact words used, but I recall the gist of the conversation, being:

    20.1. Simon said that he could not remember the passcode as he used a thumbprint reader to access the phone;

    20.2. Julian and/or the other Asian background officer said something to insinuate that Simon was lying, and then took Simon's phone and said they would send it to Canberra to be "jailbroken" and that this will wipe his apps and data.

21. Around this time, our son was visibly becoming quite distressed while the officers were raising their voices at us.

22. Our son also has trouble staying still for extended periods and was running around everywhere.

23. During this time:

    23.1. The officers searched our belongings, including my daughter's luggage which they had brought back from the plane and asked her to unlock. The officers went through all her belongings including her underwear, clothes, bra and sanitary pads;

    23.2. The officers asked me about a cheap fake gold ring they found in my daughter's suitcase and asked me what it was;

    23.3. The officers took my son's bag of story books away from him, even though I asked them not to, telling them that he has disabilities and is attached to the books. The officers went through the books one-by-one while my son was screaming for them back, visibly quite distressed;

    23.4. The electronic devices the officers took included my phone, Simon's phone, and both our Surface Pro laptops. When talking these items the officers told

V.R

us, in substance, that they did not need our consent under the customs laws and have the powers to do what they want;

23.5. I asked on more than one occasion for permission to contact our lawyers, which they refused;

23.6. We were not advised of any rights we had during this process. We informed the officers on various occasions that there were items of legal professional privilege amongst our electronics to which they responded by stating, in substance, that legal professional privilege does not apply to them at Border Force;

23.7. We were explicitly instructed to unlock the devices to allow their direct connection for data extraction, being stated to us that, in substance, without unlocking, the devices could neither be searched nor the content downloaded. We were further warned that if we refused to comply, the devices would be confiscated, accessed, and searched at a later time regardless of our consent;

23.8. The officers stated, in substance, that we could be arrested and detained for longer if we failed to cooperate. We complied with their requests in these circumstances, as I felt we had no other choice under duress. They plugged the phones into machines, and my phone was not the same when returned to me. For example, different apps were open, passwords were deleted and things searched including conversations with our legal teams, which I could see as several messages were left open;

23.9. The officers made copies of paperwork we had with us despite our continued claims for Legal Professional Priviledge.

24. The officers did not return Simon's iPhone 11 to him on that day. One of the officers said that they did not know when or if they would return the iPhone 11 to us. We eventually received an email on or about 2 December 2024 from OSCG Perth Airport stating the iPhone 11 was now in Perth Airport ready for us.

25. Simon and I instructed the law firm Hammond Legal to write to the ABF about these events.

26. Attached and marked "**VR-3**" are true copies of letters dated 10 October 2024, 14 October 2024 and 23 October 2024 between Hammond Legal and the ABF.

V.R

27. On or about 9 October 2024, my daughter Atrisa travelled from Bali to Perth on her own, as she had to finish her final exams and school year.

28. Atrisa has since told me, and I verily believe, that when she was at the airport:

    28.1. She heard an ABF officer saying something to the effect of, we got one of them;

    28.2. She was stopped by an ABF officer who asked her questions about who she was travelling with and where her mother was;

    28.3. Whilst being questioned, one of the same officers who searched us on the previous occasion (when we were travelling from Perth to Bali) was observing from a few feet away;

    28.4. She was questioned about who will be picking her up from the airport and their relationship to her;

    28.5. The officer did not ask her whether she wanted to call a parent.

29. Atrisa was still 15 years old during this time.

30. On or about 17 November 2024, when Atrisa was returning from Perth to Bali, I received a call from her phone and a person who identified themselves as an ABF officer asked me if Atrisa was okay to travel and stated that it is their procedure to speak to a parent regarding arrivals and/or departures to ensure the child's safety.

Virginie Fanny-Dullo

31. I was in Indonesia during the events described below.

32. On or about 7 January 2025 at 9.32AM, I received a telephone call from Jean-Francois Dulloo (**Jean-Francois**). I know Jean-Francois to be the husband of Virgine Fanny-Dulloo (**Virginie**).

33. Virginie used to work with me us at FFG and the Hive She worked there from about November 2021 to November 2022

34. It was very unusual to receive a call from Jean-Francois as he never really calls me.

35. I cannot recall the exact words used, however I recall the gist of what Jean-Francois said, being:

V.R

35.1. The NDIS investigators are at our house and have forced themselves in telling Virginie she has no choice but to speak to them;

35.2. The NDIS investigators have been there for some time now;

35.3. Can you please call Virginie as soon as possible.

36. I said to Jean-Francois, in substance, that I was not sure what I could do but that I was happy to call her.

37. I called Virginie's phone but there was no answer.

38. At about 10:39 AM, Jean-Francois called me back via video call with Virginie.

39. I do not recall the exact words used, however I recall the gist of the conversation, being:

39.1. Jean-Francois said the NDIS investigators had left;

39.2. Virginie said that a person from the NDIS called John Maloney and a female NDIS investigator, who did not provide her name, were at her house and they interrogated her for about two hours;

39.3. Virginie said that John Maloney said to her:

(a) I have enough evidence to put forward to the DPP to throw you in prison, unless you are willing to sign a witness statement and give us what we want;

(b) Vida is a liar, a manipulative person and we want your help to throw Vida in prison;

(c) You can work with the NDIS and there will be no consequences for you, or we can put your face all over the news like we did to Vida;

39.4. Virginie said that she asked to speak to a lawyer before she decided what to do;

39.5. Virginie said that John Maloney responded by saying:

(a) You have 24 hours to make up your mind;

V.R

(b) We have enough evidence to give to the DPP and throw you in prison for a very long time unless you give me a statement I can use against Vida;

(c) We know Vida is in Bali and is not coming back;

(d) We have been listening to all your phone calls with Vida and are continuously monitoring Vida's movements, calls and messages and are aware you haven't been speaking to her for a while.

(e) You can protect yourself and give us a statement or you go to jail, which is it going to be?

(f) You have until tomorrow to call us or we will proceed with prosecuting you;

(g) It's your neck or her neck, what's it going to be?;

39.6. Virginie said that the investigators asked her more questions about me, FFG, and her own previous NDIS company which she was a director of called Dream BIG.

Sworn by the deponent, **Vida Reid**)
at)
, in Indonesia)

on 24 January 2025.

Signature

Before me)
Kristen Santoro)
Solicitor)
High Court of
Australia.

Signature

V.R

ASIC
Australian Securities & Investments Commission

Current & Historical Company Extract

Name: FORWARD FOCUSED GROUP PTY LTD.
ACN: 643 878 639

Date/Time: 11 November 2024 AEST 01:45:36 PM

This extract contains information derived from the Australian Securities and Investments Commission's (ASIC) database under section 1274A of the Corporations Act 2001.

Please advise ASIC of any error or omission which you may identify.

EXTRACT

V.R

Organisation Details		Document Number
Current Organisation Details		
Name:	FORWARD FOCUSED GROUP PTY LTD.	4EAA78119
ACN:	643 878 639	
ABN:	98643878639	
Registered in:	Western Australia	
Registration date:	28/08/2020	
Next review date:	28/08/2025	
Name start date:	28/08/2020	
Status:	Registered	
Company type:	Australian Proprietary Company	
Class:	Limited By Shares	
Subclass:	Proprietary Company	

Address Details		Document Number
Current		
Registered address:	Unit 25, 19 Malibu Road, SAFETY BAY WA 6169	7ECN69504
Start date:	29/01/2024	
Principal Place Of Business address:	Unit 25, 19 Malibu Road, SAFETY BAY WA 6169	7ECN69504
Start date:	30/12/2022	
Historical		
Registered address:	Unit 2, 210 Jull Street, ARMADALE WA 6112	7EBY19440
Start date:	15/11/2022	
Cease date:	28/01/2024	
Registered address:	96 Amethyst Crescent, MOUNT RICHON WA 6112	4EAA78119
Start date:	28/08/2020	
Cease date:	14/11/2022	
Principal Place Of Business address:	Unit 2, 210 Jull Street, ARMADALE WA 6112	7EBY19440
Start date:	01/08/2021	
Cease date:	29/12/2022	
Principal Place Of Business address:	96 Amethyst Crescent, MOUNT RICHON WA 6112	4EAA78119
Start date:	28/08/2020	
Cease date:	31/07/2021	

Contact Address	
Section 146A of the Corporations Act 2001 states 'A contact address is the address to which communications and notices are sent from ASIC to the company'.	
Current	
Address:	Unit 2, 8 Leslie Street, CANNINGTON WA 6107
Start date:	24/08/2022
Historical	

Address:	PO BOX 315, KELMSCOTT WA 6991
Start date:	28/10/2020
Cease date:	24/08/2022

Officeholders and Other Roles		Document Number
Director		
Name:	SIMON ASHLEY REID	7ECN69504
Address:	Unit 25, 19 Malibu Road, SAFETY BAY WA 6169	
Born:	17/09/1981, SUBIACO, WA	
Appointment date:	01/11/2022	
Secretary		
Name:	SIMON ASHLEY REID	7ECN69504
Address:	Unit 25, 19 Malibu Road, SAFETY BAY WA 6169	
Born:	17/09/1981, SUBIACO, WA	
Appointment date:	01/11/2022	
Previous Director		
Name:	TORI VINCE	7EBY81506
Address:	6 Oakham Way, ORELIA WA 6167	
Born:	13/03/1993, MELBOURNE, VIC	
Appointment date:	21/10/2022	
Cease date:	22/01/2024	
Name:	VIDA REID	4EAA78119
Address:	96 Amethyst Crescent, MOUNT RICHON WA 6112	
Born:	11/01/1987, , ISLAMIC REPUBLIC OF IRAN	
Appointment date:	28/08/2020	
Cease date:	01/11/2022	
Name:	SIMON REID	4EAA78119
Address:	96 Amethyst Crescent, MOUNT RICHON WA 6112	
Born:	17/09/1981, PERTH, WA	
Appointment date:	28/08/2020	
Cease date:	03/01/2021	

Share Information

Share Structure

Class	Description	Number issued	Total amount paid	Total amount unpaid	Document number
FOU	FOUNDER'S	100	100.00	0.00	7EBO37841

Members

Note: For each class of shares issued by a proprietary company, ASIC records the details of the top twenty members of the class (based on shareholdings). The details of any other members holding the same number of shares as the twentieth ranked member will also be recorded by ASIC on the database. Where available, historical records show that a member has ceased to be ranked amongst the top twenty members. This may, but does not necessarily mean, that they have ceased to be a member of the company.

Name:	VIDA REID
Address:	Unit 2, 210 Jull Street, ARMADALE WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	95	no	FULLY	7EBV96910

Name: MD REJAUL ALAM
Address: Unit 2, 8 Leslie Street, CANNINGTON WA 6107

Class	Number held	Beneficially held	Paid	Document number
FOU	5	no	FULLY	7EBV96910

Previous Members

Name: REJAUL ALAM
Address: Unit 2, 210 Jull Street, ARMADALE WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	5	yes	FULLY	7EBO37841

Name: VIDA REID
Address: 96 Amethyst Crescent, MOUNT RICHON WA 6112
Name: SIMON REID
Address: 96 Amethyst Crescent, MOUNT RICHON WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	2	yes	FULLY	031024617

Name: VIDA REID
Address: Unit 2, 210 Jull Street, ARMADALE WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	48	yes	FULLY	7EBO37841

Name: SIMON REID
Address: Unit 2, 210 Jull Street, ARMADALE WA 6112

Class	Number held	Beneficially held	Paid	Document number
FOU	47	yes	FULLY	7EBO37841

Documents

Note: Where no Date Processed is shown, the document in question has not been processed. In these instances care should be taken in using information that may be updated by the document when it is processed. Where the Date Processed is shown but there is a zero under No Pages, the document has been processed but a copy is not yet available.

Date received	Form type	Date processed	Number of pages	Effective date	Document number
28/08/2020	201C Application For Registration As A Proprietary Company	28/08/2020	4	28/08/2020	4EAA78119
02/11/2020	902 Supplementary Document	07/12/2020	2	28/08/2020	031024617
19/12/2021	484 Change To Company Details 484O Changes To Share Structure 484G Notification Of Share Issue 484N Changes To (Members) Share Holdings	19/12/2021	4	19/12/2021	7EBO37841
03/01/2022	484E Change To Company Details Appointment Or Cessation Of A Company Officeholder	03/01/2022	2	03/01/2022	7EBO60966
01/09/2022	484N Change To Company Details Changes To (Members) Share Holdings	01/09/2022	3	01/09/2022	7EBV96910
08/11/2022	484 Change To Company Details 484B Change Of Registered Address 484C Change Of Principal Place Of Business (Address) 484E Appointment Or Cessation Of A Company Officeholder	08/11/2022	2	08/11/2022	7EBY19440
08/11/2022	484E Change To Company Details Appointment Or Cessation Of A Company Officeholder	08/11/2022	2	08/11/2022	7EBY19834
25/11/2022	484E Change To Company Details Appointment Or Cessation Of A Company Officeholder	25/11/2022	2	25/11/2022	7EBY81506
22/01/2024	484 Change To Company Details 484B Change Of Registered Address 484C Change Of Principal Place Of	22/01/2024	3	22/01/2024	7ECN69504

	Business (Address) 484A1 Change Officeholder Name Or Address 484E Appointment Or Cessation Of A Company Officeholder 484E1 Cessation Of Company Director Later Than 28 Days				

End of Extract of 5 Pages

Outcome Details

Result Type: Dismissed For Want of Prosecution - s25

Judicial Officer: Magistrate G RANDAZZO
Result Date: 23/02/2024

Result Reason:

Confirmed: 23/02/2024 10:21

Count	Charge	Offence	Appearance Reason
0	PE 45658/2022	Did anything with the the intention of dishonestly causing a loss to a Commonwealth entity	Committal Mention
0	PE 45657/2022	Did anything with the the intention of dishonestly causing a loss to a Commonwealth entity	Committal Mention
0	PE 45655/2022	Dealt with property reasonably suspected of being proceeds of crime and valued at $100,000 or more	Committal Mention
0	PE 45656/2022	Dealt with property reasonably suspected of being proceeds of crime and valued at $100,000 or more	Committal Mention

HL | HAMMOND LEGAL

10 October 2024

17 Rheola Street, West Perth WA 6005
T +61 8 6311 7080 | F +61 8 6311 7081
www.hammondlegal.com.au
ABN 15 623 425 696

Our ref: 1944

John Hammond | Director
john@hammondlegal.com.au

Daniel Rice | Senior Associate
daniel@hammondlegal.com.au

PRIVATE & CONFIDENTIAL

Australian Border Force

By email: OSCGPerthAirport@abf.gov.au

To the Proper Officer,

Mr & Mrs Simon and Vida Reid
Search and Seizure – Perth International Airpoirt – 25 September 2024

We refer to the above matter.

1. We act for Mr & Mrs Simon and Vida Reid.
2. Our clients have instructed us that on 25 September 2024 at Perth International Airport our clients were set to board flight No. QZ537 destined for Bali Indonesia when they were apprehended by Australian Border Force **(ABF)** staff.
3. We are instructed that the ABF staff detained our clients for a period of about three hours during which time the ABF staff:
   a. searched our clients' belongings including their children's belongings, one of whom has disabilities;
   b. seized their electronic devices;
   c. advised our clients they had made copies of the contents of the electronic devices. We are instructed those devices contained sensitive information that may be subject to Legal Professional Privilege; and
   d. retained Mr Reid's iPhone 11. We refer to the Receipt of Goods No. 195253 provided to Mr Reid.
4. We are instructed that ABF staff advised our clients that the ABF had been alerted by persons on behalf of the National Disability Insurance Agency **(NDIA)** that our clients are in effect persons of interest.
5. The information conveyed by persons on behalf of the NDIA therefore appears to form the basis for the ABF's targeting of our clients.
6. Mrs Reid was the subject of a criminal prosecution initiated by the NDIA. Those proceedings were dismissed for want of prosecution on 23 February 2024 in the Perth Magistrates Court.

Liability Limited by a Scheme approved under the Professional Standards Legislation.

V.R

7. In circumstances that there is no pending investigation or charges against our clients, and our clients have not been convicted for any offences concerning a federal authority, it would appear that the ABF did not have a legitimate purpose to target our clients in the manner in which they did.

8. We therefore request particulars as to:

   a. the basis for which our clients were detained, searched and had their property seized; and

   b. with reference to s 186A of the *Customs Act* 1901, the basis for which the contents of our clients' electronic devices were copied.

9. Lastly, we request that Mr Reid's iPhone 11 be returned to him immediately and confirmation that any data extracted and copied from our client's electronic devices be permanently deleted and not used for any purpose.

10. We request that this correspondence be forwarded to persons in your organisation with authority to deal with the matters contained herein.

11. We look forward to your reply as a matter of urgency.

If you have any queries, please make contact.

Yours sincerely

Hammond Legal

HAMMOND LEGAL

KS - V.R

Australian
BORDER FORCE

14 October 2024

Hammond Legal
By Email: daniel@hammondlegal.com.au

You ref: 1944

Dear Hammond Legal

Thank you for your correspondence dated 10 October 2024 where you advise that you act for Mr and Mrs Simon and Vida Reid.

We have, below, responded to your request for further particulars in regards to the matters you raised in paragraph eight of your correspondence.

The basis for detention, searches and property seizure

With respect to your clients' interactions with the Australian Border Force (ABF) on 25 September 2024 at the Perth International Airport, I can advise that at no point were they subject to detention, or was any of their property seized.

Goods belonging to your clients were examined by the ABF in accordance with the sections of the Customs Act referenced below. Your clients were present during their examination but they were not compelled to remain with their goods at the screening point by the ABF.

Under section 186 of the *Customs Act 1901 (Customs Act)*, ABF officers are entitled to examine goods (including electronic devices) subject to customs control.

Section 30 of the Customs Act provides for when goods are subject to customs control.

Section 30(d) of the Customs Act provides, as far as relevant, that good subject to customs control includes goods 'from the time the goods are brought into, any prescribed place for export, until their exportation to a place outside Australia'.

Perth International Airport is a prescribed place for export for the purposes of section 30(d).

As such, ABF officers were empowered to examine the goods, belonging to your clients' – that were brought to Perth International airport on 25 September 2024 and which were destined for an overseas location (in this case Indonesia).

ABF Officers may as a part of their examining of goods:

- Open any package in which goods are or may be contained
- Use a device such as an x-ray machine, ion scanning equipment or available technologies on the goods
- Test or analyse the goods

- Measure or count the goods
- If the goods are a document, read the document either directly or with the use of an electronic device
- Use detector dogs to assist in examining the goods

Copies of electronic devices

I confirm that ABF has not, under section 186A of the Customs Act, made any copies of your clients' electronic devices.

Return of device and LPP claim

I confirm that Mr Simon Reid's mobile device – IPhone – IMEI – 35166476996627 is currently being held by the ABF pending examination under section 186 of the Customs Act.

If your client is claiming legal professional privilege (LPP) in respect to this device we invite your clients to provide particulars of their claim for LPP in the next 14 days.

We confirm that the ABF will not copy or review any of the content of the device until receipt of their particularised claims on or before **4pm on 28 October 2024** being fourteen (14) days from 14 October 2024. However if ABF does not receive a response to this invitation to particularise the claim of LPP on or before 4pm on the 28 October 2024, the ABF will review the data on your clients phone.

The ABF will assess any claims for LPP in good faith and promptly identify any material in respect of which a claim is accepted or not contested and notify your clients. The ABF will otherwise review data on your client's phone that is not particularised as being subject to LPP.

The ABF will not review or rely on such material identified as subject of a claim of LPP by your clients, and as practicable, will maintain it as quarantined data. The ABF may request additional information from your clients in respect of any material identified as LPP that it is reasonably necessary for the ABF to determine whether a claim of LPP is justified. The ABF will work with your clients in good faith to resolve any disputed claims of LPP.

When particularising the claim can you please have your clients provide the document identification details required to ensure that the material can be quarantined and excluded from any examination if the event the LPP claim is accepted. We also ask that your clients provides the following details for each document they assert is covered by LPP:

- Specific grounds on which LPP is claimed;
- Facts relied upon giving rise to a claim of LPP; and
- Whether LPP is claimed over whole or part of the document.

If following reasonable attempts to resolve any disputed claims of LPP the claims remain unresolved, the ABF will notify your clients in writing that it does not accept a claim of LPP in respect of any material identified by your clients and provide your client with seven (7) days to commence proceedings to establish the privilege claimed. Should

proceedings not be commenced within seven (7) days, on the 8th day the ABF will review all of the potential LPP material on the basis that no LPP claim has been made by your clients with respect of that material.

Yours sincerely

Karen 56550
A/g Inspector
WA Aviation Management
Australian Border Force

KG VR

HL | HAMMOND LEGAL

23 October 2024

17 Rheola Street, West Perth WA 6005
T +61 8 6311 7080 | F +61 8 6311 7081
www.hammondlegal.com.au
ABN 15 623 425 696

Our ref: 1944

John Hammond | Director
john@hammondlegal.com.au

Daniel Rice | Senior Associate
daniel@hammondlegal.com.au

PRIVATE & CONFIDENTIAL
Karen 56550
A/g Inspector
WA Aviation Management
Australian Border Force

By email: OSCGPerthAirport@abf.gov.au

Dear Karen,

Mr & Mrs Simon and Vida Reid
Search and Seizure – Perth International Airpoirt – 25 September 2024

We refer to your letter of 14 October 2024.

1. We have serious concerns for not only the conduct of the customs officer's as alleged by our clients as stated in our letter of 10 October 2024 but also in your response dated 14 October 2024.

2. The officers' conduct as alleged and your response to our correspondence appears to demonstrate a serious misunderstanding of the powers available to customs officers under the *Customs Act* 1901 **(the Act)**.

3. Our view is that the customs officer's conduct in apprehending our clients without a proper basis and seizing Mr Reid's mobile telephone was not done in accordance with the Act and amounts to gross invasion of our client's privacy.

4. Our clients further maintain their position that copies were made of their electronic devices pursuant to s186A(2) and that their devices were seized for a considerable time to effect this process. We are instructed that statements made by the customs officers are inconsistent with your denial that no copies were made of their electronic devices.

5. In reference to the above, we refer to the decision of *DPP (Cth) v Farmer (a Pseudonym) and Ors* [2017] VSCA 292, in which Priest JA stated at [207]:

> *"Recognising that the Customs Act 1901 is concerned with both the exaction of revenue and the control of prohibited or restricted matter, it is consistent with the purposes and objects of the Act, and with the ordinary and natural meaning of the term, to conclude that export means taking goods out of Australia with the intention of landing them at some place beyond Australian territory. To that extent, export has connotations of a one-way journey of goods from Australia to an ultimate*

Liability Limited by a Scheme approved under the Professional Standards Legislation.

destination in another place outside Australia. Ordinarily, conveying the personal effects of a passenger — reading glasses, watch, wedding ring, wallet, camera and the like — from the country with no intention that they be landed in another, could not properly be described as an export of those personal effects. In the present case it could not accurately be said that there was any evidence that could justify the conclusion that the telephone accompanying Farmer on 14 April 2013 was to be landed in another country, let alone that it might attract duty, or that it was, or contained, prohibited goods. In my opinion, therefore, the telephone was not 'goods for export', and hence was not 'subject to the control of customs'. Accordingly, the officers' powers under ss186 and 186A were not engaged."

6. We note that you have not adequately addressed paragraph 8 of our letter dated 10 October 2024.

7. With reference to *Farmer*, please advise how the customs officers' apprehension, searching, and possible copying of our clients' devices falls within the scope of the Act. What breach of the Act or associated legislation were our clients reasonably suspected to have committed?

8. We refer to the Schedule herein that shows the sources of communications and documents received by our clients from their legal advisors in respect to litigious matters that are or may be contained on Mr Reid's phone, as well as in any other material held by the Australian Border Force **(ABF)**.

9. We otherwise request:

   a. the immediate return of Mr Reid's mobile phone;

   b. confirmation of the destruction of any materials that may have been copied in accordance with section 186A(2) of the Act;

   c. a formal apology to our clients and an assurance that our client's will not receive further improper treatment when leaving or entering Australia.

10. In the event the ABF is not agreeable to the matters described in the preceding paragraph, we request the provision of all file notes, memorandums and reports made in relation to the events that concerned our clients on 25 September 2024.

11. Our clients otherwise reserve the right to take further action.

12. We look forward to your reply.

If you have any queries, please make contact.

Yours sincerely

Hammond Legal

HAMMOND LEGAL

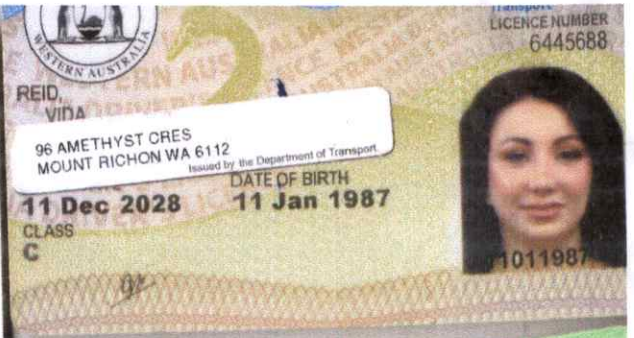
SCHEDULE OF SOURCES OF LPP MATERIAL

1. NDIS@legalaid.wa.gov.au - Nicole Smedley
2. Melissa Evans- NDIS Appeals Solicitor (Part time – Mondays and Thursdays)- Civil Law Division
3. Melissa.Evans@legalaid.wa.gov.au
4. Megan.McCormack@legalaid.wa.gov.au
5. s.howarth@sscls.asn.au - Legal assistance with NDIS for my son
6. any and all legal aid emails
7. Ryan from Avery Ashoorian law firm ryan@averyashoorian.com
8. Nathan Ebbs - nebbs@bennettlaw.com.au
9. Martin Bennett - mbennett@bennettlaw.com.au
10. Christine Arthur - carthur@bennettlaw.com.au
11. Gina Nofal - gnofal@bennettlaw.com.au
12. Audrey Webb - awebb@bennettlaw.com.au
13. Lucy Blakiston - lblakiston@bennettlaw.com.au
14. Martin Bennett - MBennett@bennettandco.com.au
15. Fabienne Sharbanee - fsharbanee@bennettandco.com.au
16. Lucy Blakiston - LBlakiston@bennettandco.com.au
17. Tracey Cole - tcole@bennettandco.com.au
18. admin@tomandcolegal.com.au
19. jason@argoslegal.com.au
20. Remy (identified by the email address remy@dfglegal.com.au)
21. Damian Gordon (identified by the email address damian@dfglegal.com.au)
22. Rachel Robson rachel@dfglegal.com.au

I Krista Lee Santoro hereby certify this to be a true & correct copy of the passport, medicare card and drivers license of Vida Reid dated this 21st day of January 2025.

Solicitor
High Court of Australia.







ADMINISTRATIVE APPEALS TRIBUNAL
GENERAL DIVISION
PERTH REGISTRY **2023/3361, 2023/3363 AND 2023/4494**

VIDA REID, SIMON REID AND FORWARD FOCUSSED GROUP PTY LTD
Applicants
COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

RESPONDENT'S SUBMISSIONS IN REPLY

1. These submissions have been prepared in accordance with the orders of Deputy President Mischin dated 17 October 2023 and in response to the Applicants' submissions (**AS**) dated 16 November 2023.

Observations

2. We acknowledge paragraph 2 of the AS, in particular, that:

    a) Ms Vida Reid does not oppose the application of a stay in relation to her AAT application (2023/3361) and,

    b) at paragraph 19(b), that "the Applicants largely agreed with the Commissioner's application for section 35 orders. They will consent to appropriate orders for a private hearings, non-publication and non-disclosure." Noting if the stay applications are granted that application need not be determined at this time.

3. The Respondent otherwise refutes the allegation (paragraph 16 of the AS) that she has repeatedly breached Tribunal orders and delayed in requesting that these matters be stayed. The Respondent has, at all times, engaged with the Applicants' representatives with a view to progressing the applications in an expeditious and efficient manner.

Submissions in response

4. In response to paragraph 9 of the AS, and the submission that "it cannot be said similar proceedings against Mr Reid are 'on the cards' or a 'reasonable possibility' in sense referred to by Robson J in *Re AWB Limited* [2008] VSC 473", the Respondent submits that delay itself does not negate the "reasonable possibility" of charges being brought.

5. The Respondent draws attention to T8 of Ms Vida Reid's Tribunal bundle, ("Tribunal documents"), a document entitled "Statement of material facts pursuant to section 35

Lodged on behalf of the Applicant
Contact: Karlie Dickinson

Prepared by: Karlie Dickinson
AGS lawyer within the meaning of s 55I of the *Judiciary Act 1903*
File ref: 22004627
Telephone: 03 9242 1244
Facsimile: 03 9242 1333
E-mail: peta.heffernan@ags.gov.au

Address for Service:
The Australian Government Solicitor
Level 33, 600 Bourke Street
MELBOURNE VIC 3000

of the Criminal Procedure Act 2004" which starts at page 149, and in particular the overview set out in the first four paragraphs (repeated here for ease of reference):

> **OVERVIEW**
>
> 1. On 19 October 2020, the National Disability Insurance Agency (NDIA) approved Forward Focused Group Pty Ltd, trading as Forward Focused (FFG), to provide services to National Disability Insurance Scheme (NDIS) participants in Western Australia. Mrs Vida REID (V REID) is the Director, shareholder and joint signatory to the company bank accounts. Mr Simon REID (S REID) is a shareholder, joint signatory to the company bank accounts and former Director.
>
> 2. Hybrid Hive Pty Ltd (HYBRID) is an unregistered provider of services to NDIS participants in Western Australia. The sole Director of HYBRID is V REID. The sole shareholder of HYBRID is The HIVE Pty Ltd (HIVE). The sole Director of HIVE is S REID. The shareholders of HIVE are V REID and S REID. The joint signatories for the HYBRID bank account are V REID and S REID.
>
> 3. It is alleged that, between 26 November 2021 and 22 June 2020, V REID and S REID caused 81 false 'payment requests' to be submitted against the funding of two disabled persons participating in the NDIS, with the intention of dishonestly causing a loss to the Commonwealth.
>
> 4. As a result of these false claims, V REID and S REID received money reasonably suspected of being proceeds of crime to the sum of $247,484.78.

6. In light of this overview the Respondent submits that similar proceedings against Mr Reid are 'on the cards' or a 'reasonable possibility' as referred to by Robson J in *Re AWB Limited* [2008] VSC 473.

7. In response to paragraph 13 of the AS, where it is stated "there is also no evidence before the AAT as to when any criminal trial concerning Ms Reid and FFG may occur", as Ms Reid is represented in her criminal prosecution by the same solicitor that is representing her (and Mr Reid and FFG) in these AAT applications, the Applicants must be aware that the criminal proceedings against Ms Vida Reid have been delayed as a result of a claim of legal professional privilege over electronic information that they themselves have lodged. Further, that the Court directed the parties to resolve this dispute by consent before Christmas and that the matter be listed for mention in February 2024.

8. It is the Respondent's submission that if the Tribunal would be assisted by further detail in relation to the criminal charges brought against Ms Vida Reid and the subsequent prosecution, including the likely timeframe to trial, then the Applicants should be directed to provide this information.

9. In response to paragraph 19(a) of the AS, where it describes the Respondent's submission as a "generalised and vague assertion" that "criminal proceedings will be potentially jeopardised if witnesses to those proceedings also given evidence in these AAT proceedings", the Respondent reiterates that there are numerous references

throughout the documentation stating that complainants were fearful of raising complainants. For example, at page 165 of the Tribunal documents:

> Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022.
>
> The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14).
>
> The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicated that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed.
>
> Example: Complaint #4-38279458621
>
> PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues.
>
> (NAME REDACTED)
>
> “I would like to remain anonymous due to security reasons as I’m scared for my family at this moment in time with most recent events”.

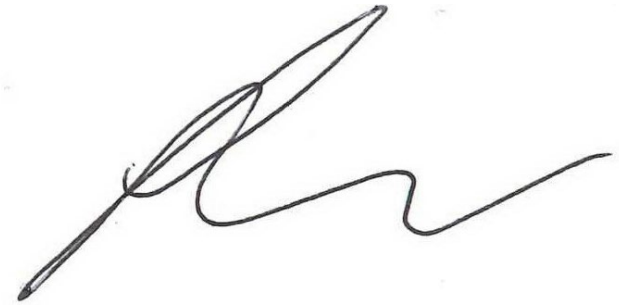
10. The Respondent repeats her submission that criminal proceedings will be potentially jeopardised if witnesses to those proceedings also given evidence in these AAT proceedings.

11. Finally, the Respondent acknowledges the affidavit of Mr Simon Reid and the statements contained therein. In the absence of any supporting documentation of financial hardship and in light of the, not insignificant matters of which Mr Reid is alleged to have been involved in, the Respondent submits that the affidavit should be given little weight.

Summary and Order sought

12. Having regard to the matters referred to above, the Commissioner continues to seek an order that these AAT applications be stayed until the concurrent criminal proceedings or any future criminal proceedings arising from the same set of circumstances has been determined.

Date: 29 November 2023



Oliver Young
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Re: ...The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed [SEC=OFFICIAL] [AGSDMS-DMS.FID4932078]

From: vida Reid (vida_reid@yahoo.com)

To: Karlie.Dickinson@ags.gov.au; brisbane.registry@art.gov.au

Bcc: Reid.simon4@gmail.com

Date: Wednesday 12 February 2025 at 03:09 pm AWST

Good Afternoon,

I just called the ART and was connected to the Perth office for some reason. I have been advised that the hearing tomorrow is via video conference.

I would like to note that I have not been provided with any links or time although now i have been advised over the phone by the ART perth Branch that is it at 10am Brisbane time.

I kidnly request that you please send me a link to the meeting asap.

Kind Regards,
Vida
Sent from my iPhone

> On 4 Feb 2025, at 10:16 PM, vida Reid <vida_reid@yahoo.com> wrote:
>
> Dear ART and Miss Dickinson,
>
> Please find attached my formal response regarding the stay of proceedings in matters 2023/3361 and 2023/4494.
>
> I note that Mr. Monks was included as a third party in prior correspondence by Miss. Dickinson regarding my recent submission on 28th Jan 2025.
>
> To ensure transparency, procedural fairness and to address the breach of privacy that has taken place, I am sending this response to all parties involved. However, I formally request that all further correspondence regarding my application be directed solely to me, as I am self-represented, and that my confidential submissions not be shared with any third parties without my explicit consent and my legal rights are upheld. I reserve all my legal rights.
>
> Given the urgency of the matters outlined in my response, I request immediate acknowledgment of receipt and confirmation that my application will be considered

without unnecessary delay.

Should you require any further information, please let me know.

Kind regards,
Vida Reid

On Monday 3 February 2025 at 06:57:06 am AWST, Dickinson, Karlie <karlie.dickinson@ags.gov.au> wrote:

OFFICIAL

Dear Mrs Reid

Thank you for forwarding your application requesting and the reasons why you seek, a stay of your application and that of FFG.

I have copied Mr Tom Monks, who represents your husband Simon and also the Brisbane Registry to this email (as the email that you had for them had a small error which may have delayed receipt of your email).

Given your application contains information that is also relevant to your husband, we would be grateful if **Tom and Co Legal** could **urgently** confirm whether Mr Simon Reid is also seeking a stay of this application. We would particularly appreciate if we could be informed of Mr Reid's position by the end of this week (i.e. Friday 7 February), given an interlocutory hearing has been listed for Thursday 13 February 2025.

Please be aware that I have taken provisional instructions from the Commission and it may be possible to agree to your request without the need for a hearing, however we are unable to confirm our position until we have an indication as to Mr Simon Reid's approach to his application.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer

Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

OFFICIAL

From: vida Reid <vida_reid@yahoo.com>
Sent: Tuesday, 28 January 2025 3:38 AM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; sydney.registry@aat.gov.au; Perth Registry <perth.registry@aat.gov.au>; brisbane.registry@att.gov.au; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed

Dear ART Registry,

I refer to the ongoing proceedings involving myself, **Vida Reid (2023/3361)**, and **Forward Focused Group Pty Ltd (2023/4494)**. I am now self-representing, and I would like to sincerely apologize for any delay in providing this update to the Tribunal. I was previously advised by my legal representatives that they would be providing updates to the ART and have assumed that all necessary notifications have been made up to this stage.

I wish to request that the Tribunal grant a **stay of proceedings** in my matter, as well as the associated matter for **Forward Focused Group Pty Ltd**, based on the principles and reasoning already presented, argued and accepted earlier on in these ongoing hearings.

As demonstrated in the submissions from the Respondent (dated 29 November 2023- I have attached it in this email for your convenience), the argument for a stay was successfully made on the basis that:

1. **Concurrent investigations and proceedings** exist, which could be compromised by the continuation of the AAT process.
2. Witnesses involved in criminal proceedings or ongoing investigations may be reluctant or fearful to participate, potentially jeopardizing fair outcomes in either forum.
3. Evidence and facts remain unresolved and are the subject of dispute in concurrent proceedings.

The same principles apply directly to these matters. The ongoing and unresolved investigations, as referenced in the Respondent's submissions, are still **active and substantive**, which makes it unreasonable to progress the AAT applications at this time.

Given this, I propose the following directions:

1. That the proceedings for **Vida Reid (2023/3361)** and **Forward Focused Group Pty Ltd (2023/4494)** be **stayed until further order** of the Tribunal to ensure no prejudice arises due to concurrent investigations and unresolved evidence disputes.
2. If the Respondent, NDIS and the Commissioner of the NDIS Quality and Safeguards Commission can **confirm that no further investigations are ongoing**, I would be open to **continuing with my application**.

In requesting this stay, I note the Respondent's own prior argument made in support of their application for a stay, as highlighted in their submissions:

- "Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings" (Respondent's Submissions, 29 November 2023, Paragraph 10).
- "[The Tribunal] must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings" (Respondent's Submissions, Paragraph 12).

Applying the **same rationale and precedent** already accepted in this matter, it is evident that staying these proceedings aligns with principles of procedural fairness and efficiency.

I have copied the Respondent's legal representative, (AGS), into this email for their awareness and to ensure full transparency.

Please do not hesitate to contact me if further information is required. I look forward to your confirmation regarding this request.

Kind regards,
Vida Reid

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.



ART - Serious Concerns - Breach of Privacy and Human Right.pdf
212.5 KB

Subject: Re: The Proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) – Stay of Proceedings

Dear Ms. Dickinson and ART,

I acknowledge receipt of your correspondence Ms. Dickinson dated 28 January 2025 regarding my request for a stay of proceedings in matters 2023/3361 and 2023/4494 before the Administrative Appeals Tribunal (AAT). I respond as follows.

I thank you for forwarding my email to the correct ART email address to prevent delay, however, I write to formally address the unauthorized dissemination of my confidential submission, pertaining to my NDIS banning order, to a third-party lawyer Mr. Monks representing my husband. Such actions constitute a breach of confidentiality and procedural impropriety, contrary to established legal principles protecting the integrity of tribunal proceedings. This action raises significant concerns regarding procedural fairness and confidentiality.

As these matters are currently under consideration by the AAT, I respectfully request that the Tribunal hold the relevant parties accountable for this breach and ensure that all future proceedings adhere to the highest standards of confidentiality and procedural integrity.

I urge and trust the ART to give due consideration to this breach and concerns and take appropriate measures to ensure the integrity of the proceedings. This is particularly pertinent as it directly impacts the question of whether our matters should remain separate to preserve the distinct confidentiality and integrity of each case.

In the matter of *Re Minister for Immigration and Multicultural Affairs; Ex parte Lam* (2003) 214 CLR 1, the High Court underscored the importance of procedural fairness in administrative proceedings. It is imperative that these standards are upheld to maintain the integrity and confidence in the tribunal process.

Furthermore, the principle of individual justice, as emphasized in *Johnson v. Johnson* (2000) 201 CLR 488, supports the necessity for separate proceedings where distinct interests are at stake. The conflation of my case with that of my husband's not only undermines procedural integrity but also deprives me of a fair and impartial hearing, violating the principles of natural justice.

I formally request that my matter, and that of Forward Focus Group, be separated from my husband's. The argument that our matters are inextricably linked is unfounded and unjust, as we are distinct individuals entitled to independent and fair consideration of our cases. It is paramount that the Tribunal intervene to rectify this situation, which has persisted for over two years, causing undue hardship and delay.

1. The Respondent’s Previous Position on Stay Orders

Ms Dickinson’s email states that the Respondent is considering my stay application but requires confirmation regarding Mr. Simon Reid’s position. I respectfully assert that this request is irrelevant to my application.

The Respondent’s **own submissions dated 29 November 2023** explicitly argued that the AAT proceedings could prejudice concurrent investigations, justifying a stay. The key points from the Respondent's submission include:

- "Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings" (*Respondent’s Submissions, 29 November 2023, Paragraph 10*).
- "The Tribunal must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings" (*Paragraph 12*).

The Respondent cannot now contradict itself by suggesting that my matters should proceed when **the factual basis for the previous stay application remains unchanged**. A stay must be granted to maintain consistency and uphold principles of procedural fairness.

2. My Legal Standing is Independent from Mr. Simon Reid

The Tribunal must assess my application **on its own merits**, independent of Mr. Simon Reid. The notion that my application should be contingent upon his position is legally unsound and contravenes my individual rights under *Kioa v West* (1985) 159 CLR 550. The Tribunal is obligated to ensure **procedural fairness for each applicant separately**.

Furthermore, throughout my arrest, detention, and court hearings brought on by the respondant, the authorities repeatedly asserted that I used Forward Focused Group Pty Ltd (FFG) as a vehicle to commit alleged offenses. Given that the Respondent has consistently linked my personal matter with FFG's, it is appropriate and necessary for both matters to be stayed together to ensure procedural fairness and consistency. The Respondent’s assumption that my case is inherently tied to Mr. Reid is erroneous, quite frankly dishonest, unethical, without merit and undermines my legal rights as an independent applicant.

3. Procedural Unfairness and Model Litigant Obligations

The Australian Government Solicitor (AGS) and the Respondent are subject to the **Model Litigant Principles**, which require them to act fairly and efficiently. The AGS’s request to delay my application pending Simon Reid’s response is an unnecessary procedural hurdle that violates these obligations.

Additionally, the Tribunal is bound by its **informality principle**, ensuring that proceedings are conducted without undue technicality. Unjustified procedural delays contravene the spirit of the AAT Act and undermine public confidence in the fairness of these proceedings.

4. Misconduct by the NDIA and Australian Border Force (ABF)

My submissions on **28th Jan 2025** include **legal correspondence from Hammond Legal (Exhibit VR-3)**, which documents serious procedural violations:

- On **26 September 2024**, Australian Border Force (ABF) detained me, my husband, and my children for **three hours** at Perth International Airport.
- **ABF officers searched my belongings, including those of my child with disabilities.**
- **ABF detained us and ABF officers seized my electronic devices and stated they had copied sensitive, legally privileged materials and denied us any legal contact or rights.**
- ABF officers informed me that the search was triggered by a direct request **from the NDIA**.

This constitutes **an abuse of process**, violating my fundamental rights. **The Tribunal must** take these events into account, as they reflect a pattern of unfair treatment by regulatory authorities.

While the **criminal charges against me were dismissed on 23 February 2024** due to lack of prosecution (*Exhibit VR-2*), the Respondent has continuously referenced ongoing investigations to justify its procedural stance in what appears as a bullying technique and abuse of power to prevent natural course of justice taking place. However, these investigations remain unresolved, and their continuation presents a substantial risk of prejudicing any future proceedings or findings. Furthermore, the unlawful actions of the NDIA and ABF, including improper data seizures and harassment, further necessitate a stay to ensure procedural fairness.

5. Systematic Targeting and Harassment by the NDIA and ABF

Further, my affidavit details systemic harassment, including:

- ABF officers explicitly stated that I had been "put on a list and flagged to be stopped every time" I travel internationally.
- ABF officers made **my children go through humiliating searches**, including my minor daughter's personal belongings.
- Officers disregarded **legal professional privilege**, refused me the right to contact my lawyer, and copied sensitive legal documents.
- My daughter, Atrisa, was later stopped **alone** by ABF, interrogated, and questioned without parental consent while being observed by officers involved in my prior stop.
- The NDIA pressured a former colleague, Virginie Fanny-Dulloo, by **coercing her into providing a statement against me under threat of prosecution.**

These events paint a picture of **systematic abuse and procedural unfairness**, necessitating urgent Tribunal intervention.

6. High Court Accountability & Potential Jurisdictional Error

The Tribunal must also be aware that its actions, or inaction, may constitute a **jurisdictional error**, making it subject to review by the High Court under **Section 75(v) of the**

Constitution. The AAT has an obligation to ensure procedural fairness and adherence to natural justice.

Potential grounds for judicial review include:

- **Denial of procedural fairness** by failing to assess my stay request independently of Simon Reid.
- **Allowing the AGS and Respondent to contradict themselves, abuse their position of power** without accountability.
- **Ignoring evidence of systemic misconduct** by the NDIA and ABF, which directly impacts the fairness of my case.
- **Permitting undue delay tactics** that breach Model Litigant obligations.

If the AAT fails to address these procedural deficiencies, I reserve the right to seek **judicial review in the High Court**, challenging the Tribunal's actions on the basis of jurisdictional error and breach of statutory duty.

7. Request for Immediate Confirmation of Stay

Given the **Respondent's own prior position** supporting a stay, and the **clear procedural and fairness concerns raised in my case**, I request the Tribunal to:

- **Immediately grant a stay** in proceedings 2023/3361 and 2023/4494.
- **Disregard the Respondent's attempt to delay the matter based on Simon Reid's position.**
- **Separate the matters immediately in order to uphold fair justice.**
- **Require the Respondent to clarify why it has shifted from its prior stance on stay orders, and basing their response on Mr. Simon Reid's response.**
- **Holding the respondent to account for what appears to be their bullying behaviour, abuse of power and delay tactics.**

I trust that the Tribunal and the Respondent will act in accordance with their obligations and provide confirmation of the stay without undue delay.

Yours sincerely,

Vida Reid

ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Comm... [AGSDMS-DMS.FID4932078]

From: Dickinson, Karlie (karlie.dickinson@ags.gov.au)

To: brisbane.registry@art.gov.au

Cc: vida_reid@yahoo.com

Date: Tuesday 11 March 2025 at 03:06 pm AWST

Dear Registrar and Mrs Reid

ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Commission (ART no. 2023/4494)

Please find attached letter sent on behalf of the Respondent in relation to the aforementioned three applications.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.

20250311 Ltr to ART and Mrs Reid in relation to stay application.pdf
210.2 KB

Our ref. 23004627

11 March 2025

Administrative Review Tribunal - Brisbane Registry
By email only: *brisbane.registry@art.gov.au*

Mrs Vida Reid
By email only: *vida_reid@yahoo.com*

Dear Registrar and Mrs Reid

ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Commission (ART no. 2023/4494)

Request for a stay

We refer to Mrs Reid's request of 28 January 2025 to stay her application (and that of Forward Focussed Group [FFG]), seeking a review of the NDIS Commission's decision to issue a Banning Order under section 73ZN(2) of the *National Disability Insurance Scheme Act 2013* made on 20 December 2022.

At the outset and to avoid confusion, we confirm that we act for the NDIS Commission. The Commission is an independent government regulator who regulates the quality and safety of NDIS supports and services. In these proceedings, we do NOT act for the National Disability Insurance Agency (NDIA), who are the government agency that implements and manages the NDIS. For abundant clarity, the NDIA are NOT a party to these proceedings. We read the references in Mrs Reid's submissions to the NDIS and the NDIS Investigator as being references to the NDIA.

Following receipt of Mrs Reid's submissions, the Commission has made enquiries with the NDIA and has been informed that there is no current criminal investigation pertaining to Mrs Reid or to FFG. In light of this information, the Commission cannot agree to the stay requested by Mrs Reid, having regard to the Tribunal's objectives in section 9 of the *Administrative Review Tribunal Act 2024*.

We observe that Mrs Reid's recent stay request is made against the following recent procedural background to these proceedings:

A Directions hearing was held on **3 October 2024** before Deputy President Lazanas where Mrs Reid was represented by her newly appointed solicitors. The subsequent directions included for Mrs Reid and FFG to file and serve any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report before **24 October 2024** and for an interlocutory hearing to be listed on **25 November 2024**.

By letter dated 23 October 2024 addressed only to the Tribunal, Mrs Reid's legal representatives requested an extension to file submissions until **21 November 2024** on the basis that they had only "recently been engaged in relation to this matter and do not yet have a copy of the documents filed by the parties in the proceedings". Included in this correspondence was an email from Mrs Vida Reid (dated 7 October 2024) informing the Tribunal that she was no longer represented by her former legal representatives. This correspondence was shared with the Commissioner by the Tribunal on 28 October 2024.

By email dated 4 November 2024, Mrs Reid's legal representatives requested an extension until **14 December 2024** to lodge submissions requesting a stay on medical grounds.

A directions hearing was listed for **6 November 2024** (and then rescheduled by the Tribunal to **14 November 2024**) to consider the request for an extension. Deputy President McMillan made directions including for Mrs Reid and FFG to file and serve any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report before **13 December 2024** and for an interlocutory hearing to be listed no earlier than **10 February 2025**.

On **16 December 2024**, having not received any submissions, the Commissioner wrote to Mrs Reid's legal representatives and requested an update in relation to the proceedings. Mrs Reid's legal representatives responded later that day with a without prejudice letter to the Commissioner.

On **20 December 2024**, the Commissioner agreed with the proposal set out in the letter of 16 December 2024 and sent further emails on **6 and & 7 January 2025** with a view to progressing this application.

By letter dated **17 January 2025**, Mrs Reid's representatives confirmed that she intended to proceed with her stay application and that it would be lodged by **24 January 2025**. By email dated **21 January 2025**, the Commissioner confirmed that she would agree to the extension required to lodge the stay application (which had fallen due on 13 December 2024) on the basis that an explanation for the delay was set out in the submissions.

By letter dated **22 January 2025**, the Tribunal notified parties that an interlocutory hearing had been listed for **13 February 2025**.

By email dated **24 January 2025**, Mrs Reid's legal representatives informed the Tribunal and parties that they were no longer instructed to act for Mrs Reid.

By email dated **28 January 2025**, Mrs Reid (now self-represented) lodged an affidavit and stay submissions requesting a stay on the basis of anticipated criminal proceedings being lodged.

By email dated **3 February 2025**, the Commissioner acknowledged receipt of these submissions and recirculated them to the Tribunal (whose email address was incorrect in the email dated 28 January 2025) and to Mr Simon Reid, party to these proceedings.

By email dated **5 February 2025**, Mrs Reid alleged a breach of privacy and human rights following the email dated 3 February 2025. She also indicated that this was the formal response to her request to stay the proceedings. On the same day, Mr

Reid's legal representatives confirmed that he did not oppose Mrs Reid's stay application but wanted to proceed with his application.

By email on **12 February 2025**, we were notified that Mr Simon Reid was no longer legally represented.

On **13 February 2025**, the directions hearing was adjourned to enable the Tribunal to further consider Mrs Reid's privacy complaint.

Finally, we are cognisant that the Tribunal is investigating the breach of privacy complaint lodged by Mrs Reid (as set out above). In these circumstances, we have not forwarded a copy of this correspondence to the second applicant, Mr Simon Reid.

Please contact us if you would like to discuss.

Yours sincerely



Karlie Dickinson
Senior Lawyer
T 03 9242 1242
Karlie.dickinson@ags.gov.au

Re: ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Comm... [AGSDMS-DMS.FID4932078]

From: vida Reid (vida_reid@yahoo.com)

To: brisbane.registry@art.gov.au; karlie.dickinson@ags.gov.au

Bcc: reid.simon4@gmail.com

Date: Thursday 13 March 2025 at 11:59 pm AWST

Dear Registrar and Miss Dickinson,

Please find attached response in relation to the respondent's recent email/letter dated 11th March 2025.

Kind Regards,
Vida

> On Tuesday 11 March 2025 at 03:06:46 pm AWST, Dickinson, Karlie <karlie.dickinson@ags.gov.au> wrote:
>
> Dear Registrar and Mrs Reid
>
> **ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Commission (ART no. 2023/4494)**
>
> Please find attached letter sent on behalf of the Respondent in relation to the aforementioned three applications.
>
> Yours sincerely
>
> Karlie Dickinson
>
> ---
>
> **Karlie Dickinson**
> Senior Lawyer
> Australian Government Solicitor
> **T** 03 9242 1244 **M** 0497 538 784
> karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.



AGS - Response.pdf
52.6 KB

ART , Australian Government Solicitor - (Karlie Dickinson)

Re: Proceedings 2023/3361 and 2023/4494 – Application for Stay

Dear ART,

I acknowledge receipt of Miss Dickinson's correspondence dated March 11, 2025, in regards to my concerns and stay application, in which I note with significant concern her statement that the NDIS Commission asserts "there is no **current** criminal investigation pertaining to myself (Vida Reid) or to FFG following inquiries with the NDIA" This assertion is inconsistent with documented events and requires urgent clarification.

Clarification Required on Investigation Status

Your carefully worded statement requires immediate clarification on several critical points:

1. Does your assertion that "there is no current criminal investigation" apply solely to investigations directly conducted by the NDIA, or does it encompass all investigative activities across all agencies participating in the NDIS Fraud Fusion Taskforce?

2. Given that the Taskforce comprises 21 government agencies working in coordination on NDIS fraud matters, has the Commission sought confirmation from all relevant agencies, including the Australian Federal Police and Australian Criminal Intelligence Commission, regarding whether any investigation relating to myself or FFG is currently active and/or moved to prosecution?

3. Is the Commission drawing a technical distinction between different classifications of investigation (such as "criminal," "administrative," "intelligence gathering," or "monitoring") that might **mislead the Tribunal** about ongoing government interest in these matters?

Inconsistency in Position Regarding Stay Application

I direct your attention to the Respondent's own submissions dated November 29, 2023, which explicitly argued for a stay of proceedings because:

- "Criminal proceedings will be potentially jeopardized if witnesses to those proceedings also give evidence in these AAT proceedings"

- "The Tribunal must exercise care in ensuring no prejudice arises to the concurrent investigations or future proceedings"

This last statement requires particular attention as without clarity on the factual basis of potential criminal charges, the tribunal could inadvertently prejudice future proceedings.

The Respondent's current opposition to my stay application represents an unexplained reversal of its previous position. This inconsistency requires explanation, particularly as:

1. Criminal charges against me were dismissed on February 23, 2024, due to lack of prosecution (Exhibit VR-2), yet the basis for the Commission's banning order remains unchanged.

2. On September 26, 2024—seven months after the dismissal of charges—Australian Border Force officers detained my family at Perth International Airport, explicitly stating that this action was "triggered by a direct request from the NDIA."

These documented events directly contradict any suggestion that government agencies have ceased interest in these matters, making your assertion that there is "no current criminal investigation" technically misleading if not outright incorrect.

Change in Legal Grounds Requiring Proper Hearing

A matter of particular concern that requires proper hearing is the change in legal grounds for the banning order issued against me. The original order was made on December 20, 2022, under section 73ZN(2)(a)(i) of the NDIS Act (NDIS rules), but was later characterized as "varied" on April 21, 2023, to section 73ZN(2)(a)(iii),(suitability grounds) substantially broadening its scope.

This fundamental shift in legal basis requires proper examination, especially as it appears to constitute a new decision rather than a genuine variation—potentially circumventing proper procedural protections. As much as I am eager to have these matters heard, I am compelled to maintain all available procedural rights to protect my interests.

Request for Specific Clarification

In the interest of procedural fairness and transparency, I request specific written confirmation on:

1. Whether the Commission acknowledges that its assertion of "no current criminal investigation" is limited solely to direct NDIA investigations and does not encompass activities by other Taskforce agencies.

2. Whether all investigative activities related to myself and FFG have ceased across all government agencies, not merely the NDIA.

3. The specific inquiries made by the Commission to determine there is "no current criminal investigation," including which agencies were contacted, what specific questions were asked, and the exact responses received.

4. An explanation for the Commission's reversal of position regarding the stay application when the circumstances that previously justified a stay remain fundamentally unchanged.

Conclusion

While the respondent has suggested that the delays in these proceedings appear attributable to me, perhaps it is intended to navigate and divert attention from what appears to be their own unlawful actions, overreach and abuse of powers and bullying conduct, My request for a stay is not intended to delay these proceedings but rather to ensure fundamental fairness and clarity before proceeding further. Until such clarity is provided, I am compelled to maintain all procedural rights available to me to protect my interests in these consequential matters.

I trust that, consistent with the Commission's obligations as a model litigant, you will provide a comprehensive response addressing each of these points specifically. **Notably**, during the joint Tribunal call on February 14, 2025, the Tribunal acknowledged the privacy breach and requested from me "two weeks to respond." To date, no resolution has been provided, perpetuating procedural unfairness.

Sincerely,

Vida Reid

Our ref. 23004627

19 March 2025

Mrs Vida Reid
By email only: *vida_reid@yahoo.com*

Cc: Administrative Review Tribunal - Brisbane Registry
By email only: *brisbane.registry@art.gov.au*

Dear Mrs Reid

ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Commission (ART no. 2023/4494)

We write further to your letter dated 14 March 2025 and confirm that the Commissioner has made enquiries of the NDIA and that our letter dated 11 March 2025 confirmed the NDIA's position as was relayed to the Commissioner.

Please contact us if you would like to discuss.

Yours sincerely

Karlie Dickinson
Senior Lawyer
T 03 9242 1242
Karlie.dickinson@ags.gov.au

Re: ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS ... [AGSDMS-DMS.FID4932078]

From: vida Reid (vida_reid@yahoo.com)

To: brisbane.registry@art.gov.au; karlie.dickinson@ags.gov.au

Date: Wednesday 2 April 2025 at 03:14 am AWST

Dear ART and Miss Dickinson,

Please find attached response. **Reminding you that I am self-represented and you are required to act as a model litigant**.

Kind Regards,
Vida

> On Wednesday 19 March 2025 at 03:13:23 pm AWST, Dickinson, Karlie <karlie.dickinson@ags.gov.au> wrote:
>
> **OFFICIAL**
>
> Dear Mrs Reid
>
> Please see attached letter.
>
> Yours sincerely
>
> Karlie Dickinson
>
> **Karlie Dickinson**
> Senior Lawyer
> Australian Government Solicitor

T 03 9242 1244
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

OFFICIAL

From: vida Reid <vida_reid@yahoo.com>
Sent: Friday, 14 March 2025 2:59 AM
To: brisbane.registry@art.gov.au; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>
Subject: Re: ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363); Forward Focussed Group Pty Ltd and NDIS Comm... [AGSDMS-DMS.FID49...

CAUTION: This email originated from outside of the organisation. Do not follow guidance, click links, or open attachments unless you recognise the sender and know the content is safe.

Dear Registrar and Miss Dickinson,

Please find attached response in relation to the respondent's recent email/letter dated 11th March 2025.

Kind Regards,

Vida

On Tuesday 11 March 2025 at 03:06:46 pm AWST, Dickinson, Karlie <karlie.dickinson@ags.gov.au> wrote:

Dear Registrar and Mrs Reid

ART Applications – Vida REID and Commissioner of the NDIS Quality and Safeguards Commission (NDIS Commission) (ART no. 2023/3361); Simon REID and NDIS Commission (ART no. 2023/3363);

Forward Focussed Group Pty Ltd and NDIS Commission (ART no. 2023/4494)

Please find attached letter sent on behalf of the Respondent in relation to the aforementioned three applications.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.



Responce to Dickinson - AGS - 19 March.pdf
92.3 KB

Re: ART Applications

- Vida Reid v Commissioner of the NDIS Quality and Safeguards Commission **(No. 2023/3361)**

- Forward Focused Group Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission **(No. 2023/4494)**

Karlie Dickinson -Senior Lawyer -Australian Government Solicitor **Your Letter Dated 19 March 2025Ms**

By email: karlie.dickinson@ags.gov.au

Attention: Tribunal Members

Dear Ms. Dickinson,

I write again regarding the inconsistencies in the NDIS Commission's position as it relates to any purported "ongoing investigation," particularly in light of the dropped charges that originally formed the core rationale for my banning order. While you confirm that the Commissioner has asked the NDIA about investigations, no steps have been taken by the Commission to revisit or lift my ban despite the changed circumstances.

Below I outline why a stay of these proceedings remains essential, especially as new evidence from the tender bundle confirms the Commission's own delegate stated that the ban would be reconsidered if criminal charges were dropped.

1. Direct Quotations from the Tender Bundle

During my internal review (21 April 2023), Ms. Sian Leathem (delegate of the Commissioner) explicitly linked the entire merit of the ban to the existence of criminal charges. Some examples, as recorded in the tender bundle:

A. "The Commission's belief in Ms. Reid's unsuitability is strongly reinforced by the criminal charges currently laid against her, indicating serious alleged dishonesty."

B. "Should those charges be dismissed or withdrawn, the Commission would be prepared to reconsider the banning order, given that the charges significantly underpin the unsuitability ground."

These remarks show that unsuitability (under s 73ZN(2)(a)(iii)) was justified based on the commissions views predominantly on the existence of charges at that time. Indeed, Ms. Leathem highlighted that continued investigations and possible prosecution by law enforcement buttressed the entire rationale for the ban.

2. Despite those statements from Ms. Leathem, the criminal charges against me were dropped in February 2024—over a year ago. Yet:

A) The Commission has neither rescinded nor modified my ban, even though the primary basis was the presence of "serious" charges.

B) The Commission has not issued any formal statement explaining why it now refuses to revisit the ban, despite having explicitly acknowledged it would do so if the charges no longer existed.

3. This silence is particularly concerning given that your 19 March 2025 letter states NDIA confirmed "no current investigation." If the Commission's original foundation (ongoing charges/investigations) has collapsed, **what is the continuing justification for my ban?**

"The Commission's delegate expressly declared that "if criminal charges are dropped, we can reconsider the ban." Yet after these charges indeed were dismissed, the Commission has made no acknowledgment of changed circumstances. This raises serious doubts about procedural fairness. An administrative decision-maker who ties a ruling to a specific factual premise must re-evaluate when that premise disappears. Failing to do so creates an unfair situation for me, especially as a self-represented party.

Furthermore, the NDIS Commission once argued for caution and possible delay based on continuing law enforcement interest. Now it effectively denies any investigation remains, but the ban is still in place, unchanged, defying its own earlier stance.

4. Renewing My Request for a Stay

Given these contradictions, I respectfully request that the Administrative Review Tribunal grant a stay of my review proceedings until:

A) The Commission comprehensively clarifies that no criminal or fraud-related agency (within or beyond NDIA) is conducting investigations.

B) The Commission acknowledges evidence in it's possession such as statements made via Ms. Leathem at the NDIS Commission that the ban "would be reconsidered if charges are dropped" and explains why it has not taken any remedial action to lift or revise the ban.

C) Failing that, it may be considered prudent in the interest of natural justice for the tribunal to make a decision to over-turn the banning order in it's entirety based on the evidence in it's possession and information in these papers.

Pushing forward without first resolving these conflicting positions risks an unfair and premature hearing. As the Commission itself originally recognized in Ms. Leathem's words, the ban's legitimacy was contingent on pending charges—charges which no longer exist.

5. Preference for Written Communications & Tribunal Oversight

I note again your invitation to "contact us to discuss" the matter outside of writing. As a self-represented party, I insist on written communications to avoid any ambiguity or informal statements that could later be incorrectly/wrongly reinterpreted. Given the Commission's shifting accounts, aggressive, unethical investigations and hostile approach to me and my family, a clear paper trail is critical for my protection and to **maintain the Tribunal's trust** in the integrity of this process. To date it appears that the Commission with the assistance and involvement of Miss Dickinson and the utilization of the AGS as a vehicle, has sought and attempted to mislead the Tribunal. These actions appear calculated and malicious to compound the ongoing injustice and trauma inflicted upon our family.

I also request that the Tribunal actively enforce and supervise these disclosures. It is essential for the Tribunal to confirm that the Commission's "no investigation" statements extend to all members of the NDIS Fraud Fusion Taskforce, not solely the NDIA, and that the Commission accounts for the dropped charges in reconsidering my ban.

The Commission's own internal review record (cited above) reveals that the entire "unsuitability" basis for my ban revolved around allegations now obviated by dismissed charges. If the Commission remains consistent with its delegate's words, it should by rights revisit or revoke the ban. Since it has not, I urge the Tribunal to impose a stay until these matters are conclusively addressed.

I appreciate your prompt written response to each point in this letter. Please note I reserve all rights to pursue judicial review and/or other remedies if I am compelled to proceed under this unresolved state of affairs.

Kind Regards,

Vida Reid

RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

From: Dickinson, Karlie (karlie.dickinson@ags.gov.au)

To: brisbane.registry@art.gov.au; vida_reid@yahoo.com

Date: Friday 16 May 2025 at 11:09 am AWST

OFFICIAL
Personal Privacy

Dear Registry

Thank you for your email on Wednesday 14 May 2025.

The Respondent is content with the approach outlined in your email and is available to appear on 6 June 2025 at 1pm (AEST) or later that same day.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

OFFICIAL
Personal Privacy

From: Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Wednesday, 14 May 2025 3:30 PM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; vida_reid@yahoo.com
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

CAUTION: This email originated from outside of the organisation. Do not follow guidance, click links, or open attachments unless you recognise the sender and know the content is

safe.

Dear Parties,

The Tribunal wishes to list this matter for a Telephone Directions Hearing to progress the matter. It should be noted that this will only be listed with the Applicant and Respondent.

The Telephone Directions Hearing will address the issues of the privacy breach, Directions to the listing of the application for a stay and Mrs Reid's application to be heard separately.

The Tribunal intends to correspond with Mr Reid and the Company, as there have been certain issues that have arisen which Ms Reid seeks to ventilate and the nature of this, indicates that such matters be dealt with in their absence. Could both Mrs Reid and the Respondent indicate their views as to this course and the availability of the parties on the below dates:
- 30 May 2025
- 1:00PM (AEST) 6 June 2025 or later
- 10 June
- 11 June

Additionally, the Respondent notes that Mrs Reid is no longer represented. Mrs Reid, could you please confirm this so fut ure correspondence can be directed to you.

Yours sincerely

Kathy L
Tribunal Services Officer

Administrative Review Tribunal
GD Registry
T: 1800 228 333
E: brisbane.registry@art.gov.au

www.art.gov.au

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been

automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

IMPORTANT:

This message and any attachments may contain confidential or legally privileged information. If the message was sent to you by mistake, please delete all copies and notify the Tribunal by return email. Any review, retransmission, dissemination or other use of this information by persons or entities other than the intended recipient is prohibited and may attract criminal penalties.

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.

Re: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

From: vida Reid (vida_reid@yahoo.com)

To: brisbane.registry@art.gov.au; karlie.dickinson@ags.gov.au

Date: Sunday 18 May 2025 at 06:38 pm AWST

Dear Tribunal Officer,

Thank you for your correspondence regarding the proposed Telephone Directions Hearing.

I confirm that I am available on **6 June 2025 at 1:00PM (AEST)** for the listed hearing or any time that day is fine as well.
As previously stated in multiple emails and also confirmed during the Teams video hearing (which was later vacated), I am **self-represented**.

Kind regards,
Vida Reid

> On Friday 16 May 2025 at 11:09:28 am AWST, Dickinson, Karlie <karlie.dickinson@ags.gov.au> wrote:
>
> **OFFICIAL**
>
> **Personal Privacy**
>
> Dear Registry
>
> Thank you for your email on Wednesday 14 May 2025.
>
> The Respondent is content with the approach outlined in your email and is available to appear on 6 June 2025 at 1pm (AEST) or later that same day.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

OFFICIAL

Personal Privacy

From: Brisbane Registry <brisbane.registry@art.gov.au>
Sent: Wednesday, 14 May 2025 3:30 PM
To: Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>; vida_reid@yahoo.com
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

CAUTION: This email originated from outside of the organisation. Do not follow guidance, click links, or open attachments unless you recognise the sender and know the content is safe.

Dear Parties,

The Tribunal wishes to list this matter for a Telephone Directions Hearing to progress the matter. It should be noted that this will only be listed with the Applicant and Respondent.

The Telephone Directions Hearing will address the issues of the privacy breach, Directions to the listing of the application for a stay and Mrs Reid's application to be heard separately.

The Tribunal intends to correspond with Mr Reid and the Company, as there have been certain issues that have arisen which Ms Reid seeks to ventilate and the nature of this, indicates that such matters be dealt with in their absence. Could both Mrs Reid and the Respondent indicate their views as to this course and the availability of the parties on the below dates:
- 30 May 2025

- 1:00PM (AEST) 6 June 2025 or later
- 10 June
- 11 June

Additionally, the Respondent notes that Mrs Reid is no longer represented. Mrs Reid, could you please confirm this so fut ure correspondence can be directed to you.

Yours sincerely

Kathy L
Tribunal Services Officer

Administrative Review Tribunal
GD Registry
T: 1800 228 333
E: brisbane.registry@art.gov.au

www.art.gov.au

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

IMPORTANT:

This message and any attachments may contain confidential or legally privileged information. If the message was sent to you by mistake, please delete all copies and notify the Tribunal by return email. Any review, retransmission, dissemination or other use of this information by persons or entities other than the intended recipient is prohibited and may attract criminal penalties.

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.

RE: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL, ACCESS=Personal-Privacy] [AGSDMS-DMS.FID4932078]

From: Dickinson, Karlie (karlie.dickinson@ags.gov.au)

To: brisbane.registry@art.gov.au; vida_reid@yahoo.com

Date: Friday 6 June 2025 at 02:24 pm AWST

OFFICIAL
Personal Privacy

Dear Registry and Mrs Reid

Thank you for your message. We have attached the proposed orders as discussed today during the directions hearing.

Mrs Reid – you will notice that we have included that the hearing be held by Microsoft teams however if you do not agree to this, please let us know as soon as possible and we will amend this order. The Commission is content for the hearing to proceed in this way.

Yours sincerely

Karlie Dickinson

Karlie Dickinson
Senior Lawyer
Australian Government Solicitor
T 03 9242 1244 **M** 0497 538 784
karlie.dickinson@ags.gov.au

My working days are: Monday, Tuesday and Wednesday

Find out more about AGS at http://www.ags.gov.au

Important: This message may contain confidential or legally privileged information. If you think it was sent to you by mistake, please delete all copies and advise the sender. For the purposes of the *Spam Act 2003*, this email is authorised by AGS.

OFFICIAL
Personal Privacy

From: Brisbane Registry <brisbane.registry@art.gov.au>

Sent: Friday, 6 June 2025 4:06 PM

To: vida_reid@yahoo.com; Dickinson, Karlie <Karlie.Dickinson@ags.gov.au>

Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence [SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy]

CAUTION: This email originated from outside of the organisation. Do not follow guidance, click links, or open attachments unless you recognise the sender and know the content is safe.

Dear Parties,

Following the conclusion of the Telephone Directions Hearing, the Tribunal seeks to enquire the parties preference of the modality of the hearing. If both parties are content with Microsoft Teams, could the Respondent please include this in the directions sought to be made.

Yours sincerely

Kathy L
Tribunal Services Officer

Administrative Review Tribunal
GD Registry
T: 1800 228 333
E: brisbane.registry@art.gov.au

www.art.gov.au

The Administrative Review Tribunal replaced the Administrative Appeals Tribunal (AAT) and Immigration Assessment Authority (IAA) on 14 October 2024. All reviews not finalised prior to this date have been automatically transferred to the new Tribunal. If you are an applicant or another party to a review, you do not need to do anything. For more information visit www.art.gov.au.

The Tribunal acknowledges the traditional owners and custodians of country throughout Australia and acknowledges their continuing connection to land, waters and community. We pay our respects to the people, the cultures and elders past and present.

IMPORTANT:

This message and any attachments may contain confidential or legally privileged information. If the message was sent to you by mistake, please delete all copies and notify the Tribunal by return email. Any review, retransmission, dissemination or other use of this information by persons or entities other than the intended recipient is prohibited and may attract criminal penalties.

If you have received this transmission in error please notify us immediately by return e-mail and delete all copies. If this e-mail or any attachments have been sent to you in error, that error does not constitute waiver of any confidentiality, privilege or copyright in respect of information in the e-mail or attachments.



20250606 Draft Tribunal Orders(55064019.1).docx
24.3 KB

ADMINISTRATIVE APPEALS TRIBUNAL
GENERAL DIVISION
PERTH REGISTRY **2023/3361, 2023/3363 AND 2023/4494**

VIDA REID, SIMON REID AND FORWARD FOCUSSED GROUP PTY LTD
Applicants
COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

RESPONDENT'S SUBMISSIONS IN REPLY

1. These submissions have been prepared in accordance with the orders of Deputy President Mischin dated 17 October 2023 and in response to the Applicants' submissions (**AS**) dated 16 November 2023.

Observations

2. We acknowledge paragraph 2 of the AS, in particular, that:

    a) Ms Vida Reid does not oppose the application of a stay in relation to her AAT application (2023/3361) and,

    b) at paragraph 19(b), that "the Applicants largely agreed with the Commissioner's application for section 35 orders. They will consent to appropriate orders for a private hearings, non-publication and non-disclosure." Noting if the stay applications are granted that application need not be determined at this time.

3. The Respondent otherwise refutes the allegation (paragraph 16 of the AS) that she has repeatedly breached Tribunal orders and delayed in requesting that these matters be stayed. The Respondent has, at all times, engaged with the Applicants' representatives with a view to progressing the applications in an expeditious and efficient manner.

Submissions in response

4. In response to paragraph 9 of the AS, and the submission that "it cannot be said similar proceedings against Mr Reid are 'on the cards' or a 'reasonable possibility' in sense referred to by Robson J in *Re AWB Limited* [2008] VSC 473", the Respondent submits that delay itself does not negate the "reasonable possibility" of charges being brought.

5. The Respondent draws attention to T8 of Ms Vida Reid's Tribunal bundle, ("Tribunal documents"), a document entitled "Statement of material facts pursuant to section 35

Lodged on behalf of the Applicant
Contact: Karlie Dickinson

Prepared by: Karlie Dickinson
AGS lawyer within the meaning of s 55I of the *Judiciary Act 1903*
File ref: 22004627
Telephone: 03 9242 1244
Facsimile: 03 9242 1333
E-mail: peta.heffernan@ags.gov.au

Address for Service:
The Australian Government Solicitor
Level 33, 600 Bourke Street
MELBOURNE VIC 3000

of the Criminal Procedure Act 2004" which starts at page 149, and in particular the overview set out in the first four paragraphs (repeated here for ease of reference):

> **OVERVIEW**
>
> 1. On 19 October 2020, the National Disability Insurance Agency (NDIA) approved Forward Focused Group Pty Ltd, trading as Forward Focused (FFG), to provide services to National Disability Insurance Scheme (NDIS) participants in Western Australia. Mrs Vida REID (V REID) is the Director, shareholder and joint signatory to the company bank accounts. Mr Simon REID (S REID) is a shareholder, joint signatory to the company bank accounts and former Director.
>
> 2. Hybrid Hive Pty Ltd (HYBRID) is an unregistered provider of services to NDIS participants in Western Australia. The sole Director of HYBRID is V REID. The sole shareholder of HYBRID is The HIVE Pty Ltd (HIVE). The sole Director of HIVE is S REID. The shareholders of HIVE are V REID and S REID. The joint signatories for the HYBRID bank account are V REID and S REID.
>
> 3. It is alleged that, between 26 November 2021 and 22 June 2020, V REID and S REID caused 81 false 'payment requests' to be submitted against the funding of two disabled persons participating in the NDIS, with the intention of dishonestly causing a loss to the Commonwealth.
>
> 4. As a result of these false claims, V REID and S REID received money reasonably suspected of being proceeds of crime to the sum of $247,484.78.

6. In light of this overview the Respondent submits that similar proceedings against Mr Reid are 'on the cards' or a 'reasonable possibility' as referred to by Robson J in *Re AWB Limited* [2008] VSC 473.

7. In response to paragraph 13 of the AS, where it is stated "there is also no evidence before the AAT as to when any criminal trial concerning Ms Reid and FFG may occur", as Ms Reid is represented in her criminal prosecution by the same solicitor that is representing her (and Mr Reid and FFG) in these AAT applications, the Applicants must be aware that the criminal proceedings against Ms Vida Reid have been delayed as a result of a claim of legal professional privilege over electronic information that they themselves have lodged. Further, that the Court directed the parties to resolve this dispute by consent before Christmas and that the matter be listed for mention in February 2024.

8. It is the Respondent's submission that if the Tribunal would be assisted by further detail in relation to the criminal charges brought against Ms Vida Reid and the subsequent prosecution, including the likely timeframe to trial, then the Applicants should be directed to provide this information.

9. In response to paragraph 19(a) of the AS, where it describes the Respondent's submission as a "generalised and vague assertion" that "criminal proceedings will be potentially jeopardised if witnesses to those proceedings also given evidence in these AAT proceedings", the Respondent reiterates that there are numerous references

throughout the documentation stating that complainants were fearful of raising complainants. For example, at page 165 of the Tribunal documents:

> Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022.
>
> The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14).
>
> The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicated that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed.
>
> Example: Complaint #4-38279458621
>
> PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues.
>
> (NAME REDACTED)
>
> “I would like to remain anonymous due to security reasons as I’m scared for my family at this moment in time with most recent events”.

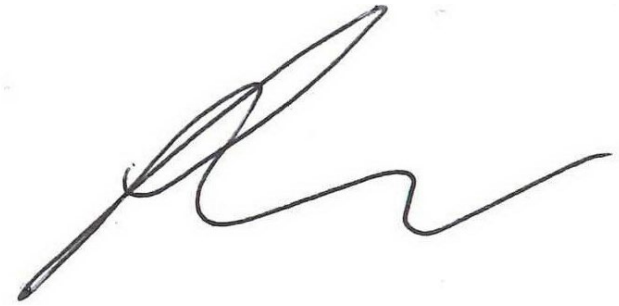
10. The Respondent repeats her submission that criminal proceedings will be potentially jeopardised if witnesses to those proceedings also given evidence in these AAT proceedings.

11. Finally, the Respondent acknowledges the affidavit of Mr Simon Reid and the statements contained therein. In the absence of any supporting documentation of financial hardship and in light of the, not insignificant matters of which Mr Reid is alleged to have been involved in, the Respondent submits that the affidavit should be given little weight.

Summary and Order sought

12. Having regard to the matters referred to above, the Commissioner continues to seek an order that these AAT applications be stayed until the concurrent criminal proceedings or any future criminal proceedings arising from the same set of circumstances has been determined.

Date: 29 November 2023



Oliver Young
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent